

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 505

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO OCCUPATIONAL AND PROFESSIONAL LICENSING; AMENDING SECTION 36-2107, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE POWERS AND DUTIES OF THE OUTFITTERS AND GUIDES LICENSING BOARD; AMENDING SECTION 54-308, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE POWERS OF THE BOARD OF ARCHITECTS AND LANDSCAPE ARCHITECTS; AMENDING SECTION 54-707, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE POWERS AND DUTIES OF THE STATE BOARD OF CHIROPRACTIC PHYSICIANS; AMENDING SECTION 54-1208, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE POWERS OF THE BOARD OF LICENSURE OF PROFESSIONAL ENGINEERS AND PROFESSIONAL LAND SURVEYORS; AMENDING SECTION 54-1223, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE SAVING CLAUSE AND EXEMPTIONS; AMENDING SECTION 54-1413, IDAHO CODE, TO REVISE PROVISIONS REGARDING DISCIPLINARY ACTION; AMENDING SECTION 54-1509, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE POWERS AND DUTIES OF THE STATE BOARD OF OPTOMETRY; AMENDING SECTION 54-1728, IDAHO CODE, TO REVISE PROVISIONS REGARDING PENALTIES AND REINSTATEMENT INTERVALS; AMENDING SECTION 54-1806, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE POWERS AND DUTIES OF THE STATE BOARD OF MEDICINE; AMENDING SECTION 54-1806A, IDAHO CODE, TO REVISE PROVISIONS REGARDING MEDICAL DISCIPLINARY ENFORCEMENT AND TO RENAME THE SECTION; AMENDING SECTION 54-2206, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE POWERS AND DUTIES OF THE PHYSICAL THERAPY LICENSURE BOARD; AMENDING SECTION 54-2305, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE POWERS OF THE BOARD OF PSYCHOLOGIST EXAMINERS; AMENDING SECTION 54-2412, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE POWERS OF THE STATE BOARD OF DRINKING WATER AND WASTEWATER PROFESSIONALS AND THE PROCEDURES FOR DISCIPLINARY PROCEEDINGS; AMENDING SECTION 54-2607, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE POWERS AND DUTIES OF THE ADMINISTRATOR OF THE DIVISION OF OCCUPATIONAL AND PROFESSIONAL LICENSES; AMENDING SECTION 54-2808, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE POWERS AND DUTIES OF THE STATE BOARD OF REGISTRATION FOR PROFESSIONAL GEOLOGISTS; AMENDING SECTION 54-2819, IDAHO CODE, TO REVISE PROVISIONS REGARDING DISCIPLINE; AMENDING SECTION 54-2910, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE POWERS AND DUTIES OF THE SPEECH, HEARING AND COMMUNICATION SERVICES LICENSURE BOARD; AMENDING SECTION 54-3003, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE BOARD OF ARCHITECTS AND LANDSCAPE ARCHITECTS; AMENDING SECTION 54-3005, IDAHO CODE, TO REVISE PROVISIONS REGARDING VIOLATIONS AND PENALTIES; AMENDING SECTION 54-3309, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE POWERS AND DUTIES OF THE STATE BOARD OF DENTISTRY; AMENDING SECTION 54-4007, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE POWERS AND DUTIES OF THE BOARD OF MASSAGE THERAPY; AMENDING SECTION 54-4107, IDAHO CODE, TO REVISE PROVISIONS REGARDING DISCIPLINARY PROCEEDINGS; AMENDING SECTION 54-4311, IDAHO CODE, TO REVISE PROVISIONS REGARDING LICENSE OR PERMIT SUSPENSION, REVOCATION, AND REFUSAL TO RENEW; AMENDING SECTION 54-5006, IDAHO CODE, TO REVISE

1 PROVISIONS REGARDING THE ADMINISTRATOR OF THE DIVISION OF OCCUPATIONAL
2 AND PROFESSIONAL LICENSES; AMENDING SECTION 54-5315, IDAHO CODE, TO
3 REVISE PROVISIONS REGARDING DISCIPLINARY PROCEEDINGS OF THE IDAHO LIQ-
4 UEFIED PETROLEUM GAS BOARD; AMENDING SECTION 54-5409, IDAHO CODE, TO
5 REVISE PROVISIONS REGARDING INJUNCTIONS AND CIVIL PENALTIES; AMENDING
6 SECTION 54-5807, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE POWERS
7 OF THE BARBER AND COSMETOLOGY SERVICES LICENSING BOARD; AMENDING SEC-
8 TION 55-1811, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE POWERS AND
9 DUTIES OF THE IDAHO REAL ESTATE COMMISSION; AMENDING SECTION 55-1813,
10 IDAHO CODE, TO REVISE PROVISIONS REGARDING INVESTIGATIONS AND PROCEED-
11 INGS OF THE IDAHO REAL ESTATE COMMISSION; AMENDING CHAPTER 26, TITLE 67,
12 IDAHO CODE, BY THE ADDITION OF A NEW SECTION 67-2616, IDAHO CODE, TO ES-
13 TABLISH PROVISIONS REGARDING DISCIPLINARY PROCEEDINGS OF THE DIVISION
14 OF OCCUPATIONAL AND PROFESSIONAL LICENSES; REPEALING SECTION 39-4125,
15 IDAHO CODE, RELATING TO INJUNCTIONS AND AFFIDAVITS; REPEALING SECTION
16 54-223, IDAHO CODE, RELATING TO INJUNCTIONS; REPEALING SECTION 54-225,
17 IDAHO CODE, RELATING TO THE PROSECUTING ATTORNEY AND THE ATTORNEY GEN-
18 ERAL; REPEALING SECTION 54-610, IDAHO CODE, RELATING TO PROCEEDINGS FOR
19 SUSPENSIONS, REVOCATIONS, OR OTHER DISCIPLINES OF LICENSES; REPEALING
20 SECTION 54-713, IDAHO CODE, RELATING TO PENALTIES AND REINSTATEMENT;
21 REPEALING SECTION 54-925, IDAHO CODE, RELATING TO OTHER GROUNDS OF RE-
22 VOCATION OR SUSPENSION OF DENTAL HYGIENISTS; REPEALING SECTION 54-926,
23 IDAHO CODE, RELATING TO OTHER GROUNDS OF REVOCATION OR SUSPENSION OF
24 DENTAL THERAPISTS; REPEALING SECTION 54-933, IDAHO CODE, RELATING TO
25 INJUNCTION PROCEDURES; REPEALING SECTION 54-1009, IDAHO CODE, RELATING
26 TO THE REVOCATION OR SUSPENSION OF LICENSES, HEARINGS, AND TAKING TES-
27 TIMONY; REPEALING SECTION 54-1127, IDAHO CODE, RELATING TO INJUNCTIONS
28 AND VENUE; REPEALING SECTION 54-1220, IDAHO CODE, RELATING TO DISCI-
29 PLINARY ACTIONS AND PROCEDURES; REPEALING SECTION 54-1416, IDAHO CODE,
30 RELATING TO INJUNCTIONS; REPEALING SECTION 54-1512, IDAHO CODE, RELAT-
31 ING TO PENALTIES AND REINSTATEMENT; REPEALING SECTION 54-1513, IDAHO
32 CODE, RELATING TO THE DUTY OF THE PROSECUTING ATTORNEY AND THE ATTORNEY
33 GENERAL; REPEALING SECTION 54-1524, IDAHO CODE, RELATING TO INJUNCTION
34 PROCEDURES; REPEALING SECTION 54-1815, IDAHO CODE, RELATING TO VIO-
35 LATION OF THE MEDICAL PRACTICE ACT AND INJUNCTIONS; REPEALING SECTION
36 54-1915, IDAHO CODE, RELATING TO THE PROCEDURE FOR IMPOSITION OF DISCI-
37 PLINE; REPEALING SECTION 54-1918, IDAHO CODE, RELATING TO SUBPOENAS AND
38 PROCESS; REPEALING SECTION 54-1920A, IDAHO CODE, RELATING TO ENFORCE-
39 MENT; REPEALING SECTION 54-2066, IDAHO CODE, RELATING TO INJUNCTIVE
40 RELIEF; REPEALING SECTION 54-2115A, IDAHO CODE, RELATING TO THE MAXIMUM
41 TIME PERIODS FOR SUSPENSION, REVOCATION, AND REAPPLICATION; REPEALING
42 SECTION 54-2116, IDAHO CODE, RELATING TO JUDICIAL REVIEW; REPEALING
43 SECTION 54-2120, IDAHO CODE, RELATING TO THE DUTY OF THE ATTORNEY GEN-
44 ERAL TO ADVISE AND REPRESENT; REPEALING SECTION 54-2220, IDAHO CODE,
45 RELATING TO DISCIPLINE ACTIONS AND PROCEDURES; REPEALING SECTION
46 54-2221, IDAHO CODE, RELATING TO DISCIPLINARY ACTIONS AND PENALTIES;
47 REPEALING SECTION 54-2311, IDAHO CODE, RELATING TO THE DUTY OF PROSE-
48 CUTING ATTORNEYS; REPEALING SECTION 54-2414, IDAHO CODE, RELATING TO
49 THE DUTY OF THE PROSECUTING ATTORNEY AND THE ATTORNEY GENERAL; REPEAL-
50 ING SECTION 54-2608, IDAHO CODE, RELATING TO REVOCATION OF CERTIFICATES

1 OF COMPETENCY, SUSPENSION, AND REFUSAL TO RENEW; REPEALING SECTION
 2 54-2920, IDAHO CODE, RELATING TO DENIAL OF APPLICATIONS; REPEALING
 3 SECTION 54-2924, IDAHO CODE, RELATING TO INVESTIGATIONS, DISCIPLINARY
 4 ACTIONS, AND PROCEDURES; REPEALING SECTION 54-2925, IDAHO CODE, RELAT-
 5 ING TO DISCIPLINARY ACTIONS AND PENALTIES; REPEALING SECTION 54-3113,
 6 IDAHO CODE, RELATING TO INVESTIGATION OF VIOLATIONS AND HEARINGS; RE-
 7 PEALING SECTION 54-3114, IDAHO CODE, RELATING TO JUDICIAL REVIEW OF
 8 BOARD ACTION; REPEALING SECTION 54-3216, IDAHO CODE, RELATING TO THE
 9 ATTORNEY GENERAL AND PROSECUTING ATTORNEYS; REPEALING SECTION 54-3321,
 10 IDAHO CODE, RELATING TO JUDICIAL REVIEW OF BOARD ACTION; REPEALING SEC-
 11 TION 54-3322, IDAHO CODE, RELATING TO SEVERABILITY; REPEALING SECTION
 12 54-3323, IDAHO CODE, RELATING TO INJUNCTION PROCEDURE; REPEALING SEC-
 13 TION 54-3409, IDAHO CODE, RELATING TO INJUNCTION PROCEDURE; REPEALING
 14 SECTION 54-3716, IDAHO CODE, RELATING TO COMPLAINTS; REPEALING SECTION
 15 54-3720, IDAHO CODE, RELATING TO PENALTIES AND DISCIPLINARY ACTIONS;
 16 REPEALING SECTION 54-4108, IDAHO CODE, RELATING TO HEARINGS; REPEALING
 17 SECTION 54-4117, IDAHO CODE, RELATING TO INJUNCTIVE RELIEF; REPEALING
 18 SECTION 54-4118, IDAHO CODE, RELATING TO PROOF OF COMPLAINT AND PROS-
 19 ECUTION BY COUNTY ATTORNEYS; REPEALING SECTION 54-4514, IDAHO CODE,
 20 RELATING TO INJUNCTIVE RELIEF; REPEALING SECTION 54-5013A, IDAHO CODE,
 21 RELATING TO REVOCATION OR SUSPENSION OF CERTIFICATES, HEARINGS, TAKING
 22 TESTIMONY, AND JUDICIAL REVIEW; REPEALING SECTION 54-5218, IDAHO CODE,
 23 RELATING TO THE ATTORNEY GENERAL AND PROSECUTING ATTORNEYS; REPEAL-
 24 ING SECTION 54-5219, IDAHO CODE, RELATING TO SEVERABILITY; REPEALING
 25 SECTION 54-5317, IDAHO CODE, RELATING TO THE DUTY OF THE PROSECUTING
 26 ATTORNEY AND THE ATTORNEY GENERAL; AMENDING SECTION 36-408, IDAHO CODE,
 27 TO PROVIDE A CORRECT CODE REFERENCE AND TO MAKE TECHNICAL CORRECTIONS;
 28 AMENDING SECTION 36-2116, IDAHO CODE, TO PROVIDE A CORRECT CODE REFER-
 29 ENCE; AMENDING SECTION 54-314, IDAHO CODE, TO REMOVE AN OBSOLETE PROVI-
 30 SION; AMENDING SECTION 54-712, IDAHO CODE, TO REMOVE A CODE REFERENCE;
 31 AMENDING SECTION 54-905, IDAHO CODE, TO REMOVE AN OBSOLETE PROVISION;
 32 AMENDING SECTION 54-906, IDAHO CODE, TO REMOVE AN OBSOLETE PROVISION;
 33 AMENDING SECTION 54-906A, IDAHO CODE, TO REMOVE AN OBSOLETE PROVI-
 34 SION; AMENDING SECTION 54-1129, IDAHO CODE, TO REMOVE A CODE REFERENCE;
 35 AMENDING SECTION 54-1212, IDAHO CODE, TO REMOVE A CODE REFERENCE AND TO
 36 MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 54-1222, IDAHO CODE, TO
 37 REMOVE AN OBSOLETE PROVISION; AMENDING SECTION 54-1502A, IDAHO CODE,
 38 TO REMOVE AN OBSOLETE PROVISION; AMENDING SECTION 54-1732, IDAHO CODE,
 39 TO PROVIDE A CORRECT CODE REFERENCE; AMENDING SECTION 54-1920, IDAHO
 40 CODE, TO REMOVE AN OBSOLETE PROVISION; AMENDING SECTION 54-2118, IDAHO
 41 CODE, TO REMOVE AN OBSOLETE PROVISION; AMENDING SECTION 54-2821, IDAHO
 42 CODE, TO REMOVE AN OBSOLETE PROVISION; AMENDING SECTION 54-3713, IDAHO
 43 CODE, TO REMOVE A CODE REFERENCE; AMENDING SECTION 54-4014, IDAHO CODE,
 44 TO REMOVE AN OBSOLETE PROVISION; AMENDING SECTION 54-4119, IDAHO CODE,
 45 TO REMOVE AN OBSOLETE PROVISION; AMENDING SECTION 54-4133, IDAHO CODE,
 46 TO REMOVE AN OBSOLETE PROVISION; AMENDING SECTION 54-4313, IDAHO CODE,
 47 TO REMOVE AN OBSOLETE PROVISION; AMENDING SECTION 54-4713, IDAHO CODE,
 48 TO REMOVE AN OBSOLETE PROVISION; AMENDING SECTION 55-1612, IDAHO CODE,
 49 TO REMOVE A CODE REFERENCE; AMENDING SECTION 55-1613, IDAHO CODE, TO

1 REMOVE A CODE REFERENCE; AND DECLARING AN EMERGENCY AND PROVIDING AN
2 EFFECTIVE DATE.

3 Be It Enacted by the Legislature of the State of Idaho:

4 SECTION 1. That Section 36-2107, Idaho Code, be, and the same is hereby
5 amended to read as follows:

6 36-2107. POWERS AND DUTIES OF BOARD. The board shall have the follow-
7 ing duties and powers:

8 (a) To conduct examinations to ascertain the qualifications of appli-
9 cants for outfitter's or guide's licenses, and to issue such licenses to
10 qualified applicants, with such restrictions and limitations thereon as the
11 board may find reasonable.

12 (b) To prescribe and establish rules of procedure to carry into effect
13 the provisions of this chapter including, but not limited to, rules pre-
14 scribing all requisite qualifications of training, experience, knowledge
15 of rules of governmental bodies, condition and type of gear and equipment,
16 and examinations to be given applicants, whether oral, written or demonstra-
17 tive, or a combination thereof.

18 ~~(c) To conduct hearings and proceedings to suspend, revoke or restrict~~
19 ~~the licenses of outfitters or guides, and to suspend, revoke or restrict said~~
20 ~~licenses for due cause in the manner hereinafter provided.~~

21 ~~(d)~~ (c) The board is expressly vested with the power and the authority
22 to enforce the provisions of this chapter, ~~including obtaining injunctive~~
23 ~~relief,~~ and to make and enforce any and all reasonable rules which shall by it
24 be deemed necessary and which are not in conflict with the provisions of this
25 chapter, for the express purpose of safeguarding the health, safety, welfare
26 and freedom from injury or danger of those persons utilizing the services of
27 outfitters and guides, and for the conservation of wildlife and range re-
28 sources.

29 ~~(e)~~ (d) The board shall have the power to cooperate with the federal and
30 state government through its appropriate agency or instrumentality in mat-
31 ters of mutual concern regarding the business of outfitting and guiding in
32 Idaho.

33 ~~(f) The board shall have the power throughout the state of Idaho to re-~~
34 ~~quest the attendance of witnesses and the production of such books, records~~
35 ~~and papers as may be required at any hearing before it. The board or its hear-~~
36 ~~ing officer may issue and serve subpoenas or subpoenas duces tecum in a man-~~
37 ~~ner consistent with chapter 52, title 67, Idaho Code, the rules of the of-~~
38 ~~fice of the attorney general, and rules 45(c) (2) and 45(g) of the Idaho rules~~
39 ~~of civil procedure. Payment of fees or mileage for service of subpoenas or~~
40 ~~attendance of witnesses shall be paid by the board consistent with the pro-~~
41 ~~visions of chapter 52, title 67, Idaho Code, the rules of the office of the~~
42 ~~attorney general, and rule 45(c) (1) of the Idaho rules of civil procedure.~~
43 ~~Disobedience of a subpoena or subpoena duces tecum may be enforced by making~~
44 ~~application to the district court. Disobedience by a licensee of a subpoena~~
45 ~~or subpoena duces tecum issued by the board shall be deemed a violation of a~~
46 ~~board order.~~

47 ~~(g)~~ (e) The division administrator shall have the power to hire en-
48 forcement agents in order to conduct investigations and enforce the provi-

sions of this chapter. All enforcement agents appointed by the board who are certified by the Idaho peace officer standards and training council shall have the power of peace officers limited to:

1. Enforcement of the provisions of this chapter.
2. Responding to express requests from other law enforcement agencies for aid and assistance in enforcing other laws. For purposes of this section, such a request from a law enforcement agency shall mean only a request as to a particular and singular violation or suspicion of violation of law and shall not constitute a continuous request for assistance outside the purview of enforcement of the provisions of this chapter.

~~(h)~~ (f) The board shall designate the number of deer or elk tags allocated pursuant to section 36-408(4), Idaho Code, among the authorized outfitting operations within each capped or controlled zone, unit, or game management area in a fair and equitable manner designed to maximize the use of allocated tags by the outfitted public and promote predictability for individual outfitting operations that have previously used or ensured the use of the allocated tags designated to them. The board will report the number of tags designated to each outfitter operation back to the department of fish and game for distribution.

SECTION 2. That Section 54-308, Idaho Code, be, and the same is hereby amended to read as follows:

54-308. BOARD -- POWERS. The board shall have, in addition to the powers conferred elsewhere in this chapter, the following powers:

~~(1) To authorize, by written agreement, the division of occupational and professional licenses to act as its agent in its interests and, at its discretion, to contract with the division of occupational and professional licenses for those services deemed necessary for the proper administration of this chapter;~~

~~(2)~~ (1) To adopt, pursuant to the administrative procedure act, such rules as are necessary for the administration and enforcement of this chapter, including a code of ethics and standards of practice;

~~(3)~~ (2) To maintain records necessary to carry out its duties under this chapter;

~~(4)~~ (3) To adopt rules setting the qualifications and fitness of applicants for licensure under this chapter;

~~(5)~~ (4) To approve continuing education courses and prescribe by rule the minimum number of continuing education hours required of each licensee seeking to obtain or renew an architect's license in the state of Idaho;

~~(6) To examine for, deny, approve, issue, revoke, suspend or otherwise discipline licenses pursuant to this chapter and to conduct investigations and hearings in connection with such actions, in accordance with the provisions of chapter 52, title 67, Idaho Code;~~

~~(7)~~ (5) To establish a procedure for an applicant to request an exemption review for a felony or lesser crime conviction. The applicant shall bear the burden and financial responsibility of providing all evidence, documentation and proof of suitability for licensure required by the board for exemption review; and

~~(8) To administer or have its designee administer oaths or affirmations to witnesses in any proceeding authorized by this chapter;~~

~~(9) (a) To engage in discovery as provided in the Idaho rules of civil procedure and chapter 52, title 67, Idaho Code, including, but not limited to, the power to take depositions of witnesses within or without the state in the manner provided by law in civil cases, and to require the attendance of witnesses and the production of books, records and papers as it may desire at any hearing before it of any matter that it has authority to investigate, and for that purpose the board or its designated hearing officer may issue a subpoena for any witness or a subpoena duces tecum to compel the production of any books, records or papers, directed to the sheriff of any county of the state of Idaho where the witness resides or may be found, which shall be served and returned in the same manner as a subpoena in a criminal case is served and returned. The licensed person accused in the proceedings shall have the same right of subpoena upon making application to the board.~~

~~(b) The fees and mileage of the witnesses shall be the same as that allowed in the district courts in criminal cases and will be paid from the occupational licenses fund in the same manner as other expenses of the board are paid.~~

~~(c) In any case of disobedience to, or neglect of, any subpoena or subpoena duces tecum served upon any person, or the refusal of any witness to testify to any matter regarding which he may be interrogated, it shall be the duty of the district court, or any judge thereof, of any county in this state in which the disobedience, neglect or refusal occurs, upon application by the board, to compel obedience by proceedings for contempt as in the case of disobedience of the requirements of a subpoena issued from the court or for refusal to testify; and~~

~~(10) (6) To take such action as may be necessary to enforce the provisions of this chapter and to regulate the practice of architecture.~~

SECTION 3. That Section 54-707, Idaho Code, be, and the same is hereby amended to read as follows:

54-707. POWERS AND DUTIES. The board shall have the authority to:

~~(1) Hire or appoint employees, including an executive director, investigators, attorneys, consultants and independent hearing examiners;~~

~~(2) (1) Establish, pursuant to the provisions of chapter 52, title 67, Idaho Code, rules, subject to legislative approval, for the administration of the provisions of this chapter;~~

~~(3) (2) Conduct Review investigations and examinations and hold hearings;~~

~~(4) Revoke or suspend licenses to practice chiropractic after providing the licensee with an opportunity for an appropriate contested case in accordance with the provisions of chapter 52, title 67, Idaho Code;~~

~~(5) In any disciplinary proceeding pursuant to this chapter to administer oaths, take depositions of witnesses within or without the state in the manner provided by law in civil cases, and shall have the power throughout the state of Idaho to require the attendance of such witnesses and the production of such books, records, and papers as it may desire at any hearing and, for that purpose, the board may issue a subpoena for any witnesses or subpoena duces tecum to compel the production of any books, records or papers, directed to the sheriff of any county in the state of Idaho, where~~

~~such witness resides or may be found, which shall be served and returned in the same manner as a subpoena in a criminal case is served and returned. The fees and mileage of the witnesses shall be the same as allowed in the district courts in criminal cases, which fees and mileage shall be paid from any funds in the state treasury in the same manner as other expenses of the board are paid. The licensee accused in such proceedings shall have the same right of subpoena upon making application to the board therefor. In any case of disobedience to, or neglect of, any subpoena or subpoena duces tecum, served upon any person, or the refusal of any witness to testify to any matter regarding which he may lawfully be interrogated, it shall be the duty of the district court of any county in this state in which this disobedience, neglect or refusal occurs, on application by the board to compel compliance with the subpoena, to issue its order directing compliance with such subpoena, and in the event of a violation of such order, to compel compliance with such order by proceedings for contempt as in the case of disobedience of the requirement of a subpoena issued from such court or for refusal to testify therein;~~

~~(6) Seek injunctive relief prohibiting the unlawful practice of chiropractic;~~

~~(7) Make and enter into contracts in the necessary performance of its duties pursuant to this chapter;~~

~~(8) Develop and submit a proposed budget setting forth the amount necessary to perform its functions;~~

~~(9) (3) Perform such other duties as set forth in the laws of this state;~~

~~(10) (4) Provide such other services and perform such other functions as are necessary to fulfill its responsibilities; and~~

~~(11) Adopt rules to provide for reasonable fees and for administrative costs and to assess costs reasonably and necessarily incurred in the enforcement of this chapter when a licensee has been found to be in violation thereof; and~~

~~(12) (5) Adopt a rule requiring continuing education as a condition of continued licensure or continued certification in clinical nutrition.~~

SECTION 4. That Section 54-1208, Idaho Code, be, and the same is hereby amended to read as follows:

54-1208. BOARD -- POWERS. (1) The board shall have the power to adopt and amend administrative rules including, but not limited to, rules of professional responsibility, rules of continuing professional development not to exceed sixteen (16) hours annually for each profession for which the professional is licensed, and rules of procedure, not inconsistent with the constitution and laws of this state, which may be reasonably necessary for the proper performance of its duties and the administration of the chapter and the regulation of proceedings before the board. These actions by the board shall be binding upon persons licensed under this chapter and shall be applicable to business entities holding a certificate of authorization as provided in section 54-1235, Idaho Code. It shall adopt and have an official seal which shall be affixed to each license and certificate issued. ~~It shall have power to provide an office, office equipment and facilities and such books and records as may be reasonably necessary for the proper performance of its duties.~~

~~(2) In carrying into effect the provisions of this chapter, the board may subpoena witnesses and compel their attendance, and also may require the submission of books, papers, documents, or other pertinent data in any disciplinary matters or in any case wherever a violation of this chapter is alleged. Upon failure or refusal to comply with any such order of the board, or upon failure to honor its subpoena as herein provided, the board may apply to any court of any jurisdiction to enforce compliance with same.~~

~~(3) The board is hereby authorized in the name of the state to apply for relief by injunction in the established manner provided in cases of civil procedure, without bond, to enforce the provisions of this chapter or to restrain any violation thereof. Venue for all such actions shall be in the district court of the fourth judicial district, Ada county, Idaho.~~

~~(4)~~ (2) The board may subject an applicant for licensure or certification to such examination as it deems necessary to determine qualifications.

~~(5)~~ (3) Any action, claim or demand to recover money damages from the board or its employees which any person is legally entitled to recover as compensation for the negligent or otherwise wrongful act or omission of the board or its employees, when acting within the course and scope of their employment, shall be governed by the Idaho tort claims act, chapter 9, title 6, Idaho Code. For purposes of this section, the term "employees" shall include, in addition to those persons listed in section 6-902(4), Idaho Code, special assignment members, emeritus members and any independent contractors while acting within the course and scope of their board related work.

~~(6)~~ (4) The board may recommend arbitration of disputes between professional engineers or disputes between professional land surveyors.

SECTION 5. That Section 54-1223, Idaho Code, be, and the same is hereby amended to read as follows:

54-1223. SAVING CLAUSE -- EXEMPTIONS. (1) This chapter shall not be construed to affect:

(a) The practice of any other profession or trade for which a license is required under any law of this state or the United States.

(b) The work of an employee or a subordinate of a person holding a license under this chapter, provided such work does not include final engineering design or land surveying decisions and is done under the direct responsibility, checking, and supervision of, and verified by, a person holding a license under this chapter.

(c) Any individual teaching upper division engineering subjects that are classified as engineering design for any college or university in this state as of July 1, 1988, and any such individual employed after July 1, 1988, for a period of five (5) years from the date of employment with any college or university in this state.

(d) An individual doing surveying work for himself, or through a business entity, on property owned or leased by the individual or business entity, or in which the individual or business entity has an interest, estate or possessory right and which affects exclusively the property or interests of the individual or business entity; provided, that all land surveying maps, plats or plans filed with any county recorder's office in the state of Idaho for the purpose of illustrating or defining

boundaries of property ownership, shall be made by a licensed professional land surveyor as provided in this chapter.

(e) An individual doing survey work for himself, or through a business entity with respect to the location, amendment, or relocation of a mining claim.

(f) The practice of engineering by employees of a business entity as long as the services provided by them are for internal business entity use only.

(2) The board, at its discretion, may exempt an exceptional individual who has twelve (12) or more years of appropriate experience in engineering from the requirement for satisfactory completion of an examination in the fundamentals of engineering.

(3) An applicant for licensure as a professional engineer either by examination or by comity who has earned a bachelor degree in engineering from an approved engineering program and has, in addition, earned a doctorate degree in engineering from a college or university which offers an approved undergraduate program in the same discipline as the doctorate degree earned, shall be exempt from the requirement for satisfactory completion of an examination in the fundamentals of engineering. Honorary doctorate degrees are not considered earned degrees for purposes of this subsection.

~~(4) In addition to, and notwithstanding other provisions of this chapter, in circumstances of emergency creating conditions of imminent and substantial danger to the public health, safety or environment through the provision of engineering services, the prosecuting attorney or the attorney general may institute a civil action for an immediate injunction to halt the provision of engineering services.~~

~~(5)~~ (4) A professional engineer licensed in Idaho may review the work of a professional engineer who is licensed in another jurisdiction of the United States or a foreign country on a project that is a site adaptation of a standard design plan to determine that the standard design plan meets the standard of care and is applicable to the intended circumstance, with or without modification. The Idaho professional engineer shall demonstrate responsible charge, as defined in this chapter, by performing professional services related to his assignment including developing or obtaining a complete design record with design criteria and calculations, performing necessary code research and developing any necessary and appropriate changes to the standard design plan necessary to properly apply the standard design to the intended circumstance. The nonprofessional services, such as drafting, need not be redone by the Idaho professional engineer, but must clearly and accurately reflect the Idaho professional engineer's work. The burden is on the Idaho professional engineer to show such compliance. The Idaho professional engineer shall have control of and responsibility for the entire work product, shall seal, sign and date it as required in this chapter, and shall be in possession of all original documents or certified copies of documents related to the professional engineer's work for the project.

~~(6)~~ (5) In the event a licensee in responsible charge of a project leaves employment, is transferred, is promoted, becomes incapacitated, dies or is otherwise not available to seal, sign and date final documents, the duty of responsible charge of the project shall be accomplished by the successor licensee by becoming familiar with and reviewing, in detail, and

1 retaining the project documents to date. Subsequent work on the project must
 2 clearly and accurately reflect the successor licensee's responsible charge.
 3 The successor licensee shall seal, sign and date all work product in confor-
 4 mance with section 54-1215, Idaho Code.

5 SECTION 6. That Section 54-1413, Idaho Code, be, and the same is hereby
 6 amended to read as follows:

7 54-1413. DISCIPLINARY ACTION. (1) Grounds for discipline. The board
 8 shall have the power to ~~refuse to issue, renew or reinstate a license issued~~
 9 ~~pursuant to this chapter and may revoke, suspend, place on probation, repri-~~
 10 ~~mand, limit, restrict, condition or take other disciplinary action against~~
 11 ~~the licensee as it deems proper, upon a determination by the board that the~~
 12 ~~licensee~~ take disciplinary action upon a determination that an individual
 13 engaged in conduct constituting any one (1) of the following grounds:

- 14 (a) Made, or caused to be made, a false, fraudulent or forged state-
 15 ment or representation in procuring or attempting to procure a license
 16 to practice nursing;
- 17 (b) Practiced nursing under a false or assumed name;
- 18 (c) Is convicted of or enters a guilty plea for a crime deemed relevant
 19 in accordance with section 67-9411(1), Idaho Code;
- 20 (d) Is or has been grossly negligent or reckless in performing nursing
 21 functions;
- 22 (e) Habitually uses alcoholic beverages or drugs as defined by rule;
- 23 (f) Is physically or mentally unfit to practice nursing;
- 24 (g) Violates the provisions of this chapter or rules and standards of
 25 conduct and practice as may be adopted by the board;
- 26 (h) Otherwise engages in conduct of a character likely to deceive,
 27 defraud or endanger patients or the public, which includes, but is not
 28 limited to, failing or refusing to report criminal conduct or other con-
 29 duct by a licensee that endangers patients;
- 30 (i) Has been disciplined by a nursing regulatory authority in any ju-
 31 risdiction. A certified copy of the order entered by the jurisdiction
 32 shall be prima facie evidence of such discipline;
- 33 (j) Failure to comply with the terms of any board order, negotiated set-
 34 tlement or probationary agreement of the board or to pay fines or costs
 35 assessed in a prior disciplinary proceeding;
- 36 (k) Engaging in conduct with a patient that is sexual, sexually ex-
 37 ploitative, sexually demeaning or may reasonably be interpreted as
 38 sexual, sexually exploitative or sexually demeaning; or engaging in
 39 conduct with a former patient that is sexually exploitative or may
 40 reasonably be interpreted as sexually exploitative. It would not be a
 41 violation under this subsection for a nurse to continue a sexual rela-
 42 tionship with a spouse or individual of majority if a consensual sexual
 43 relationship existed prior to the establishment of the nurse-patient
 44 relationship; or
- 45 (l) Failure to comply with the requirements of the abortion complica-
 46 tions reporting act, chapter 95, title 39, Idaho Code.
- 47 (2) Separate offense. Each day an individual violates any of the provi-
 48 sions of this chapter or rules and standards of conduct and practice as may be
 49 adopted by the board shall constitute a separate offense.

~~(3) Proceedings.~~

~~(a) The executive director shall conduct such investigations and initiate such proceedings as necessary to ensure compliance with this section. The board may accept the voluntary surrender of a license from any nurse under investigation and accordingly enter an order revoking or suspending such license and/or imposing such conditions, limitations, or restrictions on the practice of any such nurse as may be appropriate in the discretion of the board. Otherwise, every person subject to disciplinary proceedings shall be afforded an opportunity for hearing after reasonable notice. All proceedings hereunder shall be in accordance with chapter 52, title 67, Idaho Code.~~

~~(b) Hearings shall be conducted by the board or by persons appointed by the board to conduct hearings and receive evidence. The board and any person duly appointed by the board to conduct hearings shall have all powers as are necessary and incident to the orderly and effective receipt of evidence including, but not limited to, the power to administer oaths and to compel by subpoena attendance of witnesses and production of books, records and things at the hearing or at a deposition taken by a party in accordance with the Idaho rules of civil procedure. Any party shall be entitled to the use of subpoena upon application therefor.~~

~~(c) In the event any person fails to comply with a subpoena personally served upon him or refuses to testify to any matter regarding which he may be lawfully interrogated, the board shall petition the district court in the county where such failure or refusal occurred, or where such person resides, to enforce such subpoena or compel such testimony. Proceedings before the district court shall be for contempt in the same nature as contempt of court for failure or refusal to comply with an order of the court, and the court shall have the same powers to secure compliance with subpoena and testimony or to impose penalties as in contempt of court proceedings.~~

~~(d) The assessment of costs and attorney's fees incurred in the investigation and prosecution or defense of an administrative proceeding against a licensee under this chapter shall be governed by the provisions of section 12-117(5), Idaho Code.~~

~~(4)~~ (3) Probation/subsequent review. Any order of the board entered under this section may be withheld or suspended for a probationary period to be fixed by the board upon such terms and conditions as may be appropriate in order to regulate, monitor and/or supervise the practice of nursing by the licensee subject to such order for the prescribed probationary period. Any order of the board entered under this section may be withdrawn, reversed, modified or amended upon a showing by the person subject to the order that the grounds for discipline no longer exist or that he is rehabilitated, qualified and competent to practice nursing and that he is not likely to violate this chapter or rules adopted hereunder in the future.

~~(5)~~ (4) Reporting investigative information.

(a) Nothing in section 74-106(8) and (9), Idaho Code, shall be construed as limiting the authority of the board to report current significant investigative information to the coordinated licensure information system for transmission to states that are parties to any multistate agreements or compacts regarding nurse licensure.

1 (b) The executive director of the board may, in the administration of
2 this chapter, share information and otherwise cooperate with govern-
3 ment regulatory and law enforcement agencies.

4 SECTION 7. That Section 54-1509, Idaho Code, be, and the same is hereby
5 amended to read as follows:

6 54-1509. STATE BOARD OF OPTOMETRY -- POWERS AND DUTIES. In order to
7 protect the public in the practice of optometry, better enable members of
8 the public to fix professional responsibility and further safeguard the
9 doctor-patient relationship, the state board of optometry shall have the
10 following powers and duties:

11 (1) To make and prescribe rules for a fair and wholly impartial method
12 of examination of candidates to practice optometry.

13 (2) To make and prescribe rules defining for the optometrists what
14 shall constitute a school, college or university or department of a univer-
15 sity or other institution reputable and in good standing and to determine the
16 reputability and good standing of a school, college or university or depart-
17 ment of a university or other institution by reference to a compliance with
18 such rules.

19 (3) To make and prescribe rules to establish a standard of preliminary
20 education deemed requisite to admission to a school, college or university
21 and to require satisfactory proof of the enforcement of such standards by
22 schools, colleges and universities.

23 (4) To make and prescribe rules governing the relicensing of persons
24 applying for a license to practice optometry in the state of Idaho after a
25 failure to maintain a license for a period in excess of five (5) years.

26 (5) To establish by rule the qualifications necessary to grant a li-
27 cense to practice optometry in Idaho by endorsement to persons licensed in
28 other states or foreign countries.

29 (6) To conduct examinations to ascertain the qualifications and fit-
30 ness of applicants to practice optometry or to recognize by rule a national
31 testing agency for the administration and grading of such test.

32 (7) To make and prescribe rules governing the minimum amount and kind
33 of continuing education in optometry to be required annually of each op-
34 tometrist seeking to renew his license to practice optometry in the state of
35 Idaho.

36 (8) To make, prescribe and promulgate rules prescribing a code of
37 ethics and standards of professional conduct in practice for the purpose of
38 regulating and governing the practice of optometry by licensed optometrists
39 within the state of Idaho and to change and modify its rules or prescribe new
40 rules in order to improve the practice of optometry for the benefit of the
41 people of the state of Idaho.

42 (9) To make, prescribe and promulgate rules regarding the establish-
43 ment of "branch offices" in the state of Idaho by persons licensed to prac-
44 tice optometry.

45 (10) To make, prescribe and promulgate rules regarding advertising by
46 optometrists licensed to practice in Idaho.

47 (11) To make, prescribe and promulgate rules defining "gross incompe-
48 tence" as grounds for suspension or revocation of an optometrist's license
49 as provided in section 54-1510, Idaho Code.

1 (12) To make, prescribe and promulgate rules governing the verification
 2 by an optometrist of the accuracy in compounding and the quality of the work-
 3 manship and materials used by any person, firm or corporation in the course
 4 of filling or compounding the optometrist's prescriptions for vision aids of
 5 any type prior to delivery by the optometrist.

6 (13) To make, prescribe and promulgate rules governing the issuance and
 7 release of prescriptions or copies of prescriptions by optometrists out of
 8 the office of the optometrist.

9 (14) To make, prescribe and promulgate rules governing the type and kind
 10 of records to be kept by each optometrist pertaining to all patients examined
 11 or for whom he has adapted optical accessories.

12 (15) To make, prescribe and promulgate such other rules required by this
 13 chapter or necessary or desirable for its enforcement and administration.

14 ~~(16) The state board of optometry shall have the power to administer~~
 15 ~~oaths, take depositions of witnesses in and out of the state of Idaho in~~
 16 ~~the manner of civil cases, require the attendance of such witnesses and the~~
 17 ~~production of such books, records and papers as it may desire at any hearing~~
 18 ~~before it or deposition authorized by it, pertaining in any manner to any~~
 19 ~~matters of which it has authority to investigate and for that purpose the~~
 20 ~~board may issue a subpoena for any witness or a subpoena duces tecum to compel~~
 21 ~~the production of any books, records or papers directed to the sheriff of any~~
 22 ~~county of the state of Idaho, where such witness resides, or may be found,~~
 23 ~~which shall be served and returned in the same manner as a subpoena in a civil~~
 24 ~~case is returned. The fees and mileage of the witnesses shall be the same as~~
 25 ~~that allowed in the district courts in civil cases. In any case of disobe-~~
 26 ~~dience to, or neglect of, any subpoena or subpoena duces tecum served upon~~
 27 ~~any person, or the refusal of any witness to testify to any matter regarding~~
 28 ~~which he may lawfully be interrogated, it shall be the duty of the district~~
 29 ~~court, or any judge thereof, of any county in this state in which the proceed-~~
 30 ~~ing is held upon application of the board, to compel obedience in proceedings~~
 31 ~~for contempt as in the case of disobedience of the requirements of any sub-~~
 32 ~~poena issued from such court or for refusal to testify therein. The licensed~~
 33 ~~person accused in such proceeding shall have the same right of subpoena upon~~
 34 ~~making application to the board as set out in this chapter.~~

35 ~~(17) The state board of optometry shall have the power to hire attor-~~
 36 ~~neys, investigators, hearing officers or other employees for carrying out~~
 37 ~~the purpose of this chapter or to promote the interests of the profession of~~
 38 ~~optometry.~~

39 ~~(18) To authorize, by written agreement, the division of occupational~~
 40 ~~and professional licenses as agent to act in its interest.~~

41 SECTION 8. That Section 54-1728, Idaho Code, be, and the same is hereby
 42 amended to read as follows:

43 54-1728. PENALTIES AND REINSTATEMENT INTERVALS. ~~(1) Upon the finding~~
 44 ~~of the existence of grounds for discipline of any person or business entity~~
 45 ~~holding, seeking, or renewing a certificate under the provisions of this~~
 46 ~~chapter, the board of pharmacy may impose any of the following penalties:~~

47 ~~(a) Suspension of the offender's certificate for a term to be deter-~~
 48 ~~mined by the board;~~

49 ~~(b) Revocation of the offender's certificate;~~

~~(c) Restriction of the offender's certificate to prohibit the offender from performing certain acts or from engaging in the practice of pharmacy in a particular manner for a term to be determined by the board;~~

~~(d) Refusal to issue or renew the offender's certificate;~~

~~(e) Placement of the offender on probation and supervision by the board for a period to be determined by the board; or~~

~~(f) Imposition of an administrative fine not to exceed two thousand dollars (\$2,000) for each occurrence providing a basis for discipline.~~

~~(2) Whenever it appears that grounds for discipline exist under this chapter and the board finds that there is an immediate danger to the public health, safety, or welfare, the board is authorized to commence emergency proceedings to suspend, revoke, or restrict the certificate. Such proceedings shall be promptly instituted and processed. Any person whose certificate has been disciplined pursuant to this subsection can contest the emergency proceedings and appeal under the applicable provisions of chapter 52, title 67, Idaho Code.~~

~~(3) (1) The board may take any action against a nonresident licensee or registrant that the board can take against a resident licensee or registrant for violation of the laws of this state or the state in which it resides.~~

~~(4) (2) The board may report any violation by a nonresident licensee or registrant, or its agent or employee, of the laws of this state, the state in which it resides or the United States to any appropriate state or federal regulatory or licensing agency including, but not limited to, the regulatory agency of the state in which the nonresident licensee or registrant is a resident.~~

~~(5) (3) The suspension, revocation, restriction or other action taken against a licensee or registrant by a state licensing board with authority over a licensee's or registrant's professional certificate or by the drug enforcement administration may result in the board's issuance of an order likewise suspending, revoking, restricting or otherwise affecting the certificate in this state, without further proceeding, but subject to the effect of any modification or reversal by the issuing state or the drug enforcement administration.~~

~~(6) The assessment of costs and fees incurred in the investigation and prosecution or defense of a person holding, seeking, or renewing a certificate under this chapter shall be governed by the provisions of section 12-117(5), Idaho Code.~~

~~(7) (4) Any person or business entity whose certificate to practice pharmacy in this state has been suspended, revoked, or restricted pursuant to this chapter, whether voluntarily or by action of the board, shall have the right, at reasonable intervals, to petition the board for reinstatement of such certificate. Such petition shall be made in writing and in the form prescribed by the board. Upon investigation and hearing, the board may in its discretion grant or deny such petition, or it may modify its original finding to reflect any circumstances that have changed sufficiently to warrant such modifications.~~

~~(8) (5) Nothing herein shall be construed as barring criminal prosecutions for violations of the act where such violations are deemed as criminal offenses in other statutes of this state or of the United States.~~

~~(9) All final decisions by the board shall be subject to judicial review pursuant to the procedures of the administrative procedure act.~~

SECTION 9. That Section 54-1806, Idaho Code, be, and the same is hereby amended to read as follows:

54-1806. POWERS AND DUTIES. The board shall have the authority to:

(1) ~~Establish, pursuant to the administrative procedure act, rules, subject to legislative approval, for administration of this chapter, including rules establishing procedures for the receipt of complaints and for the investigation and disposition thereof. Such rules shall provide for notice to a person when board staff has undertaken to investigate that person and shall provide an opportunity for a person under investigation to meet with the committee or board staff before the initiation of formal disciplinary proceedings by the board.~~

(2) Conduct Review investigations and examinations and hold hearings as authorized by this section and by section 54-1806A, Idaho Code.

~~(3) The board shall have the power in any investigation or disciplinary proceeding pursuant to this chapter to administer oaths, take depositions of witnesses within or without the state in the manner consistent with rules adopted by the board pursuant to the administrative procedure act and, upon a determination that there is good cause, the board shall have power throughout the state of Idaho to require the attendance of such witnesses and the production of such books, records, and papers as it may deem appropriate for any investigation, deposition or hearing. For that purpose, the board may issue a subpoena for any witnesses, or a subpoena duces tecum to compel the production of any books, records, or papers, directed to the sheriff of any county of the state of Idaho where such witness resides or may be found, which subpoena shall be served and returned in the same manner as a subpoena in a criminal case is served and returned. The fees and mileage of the witnesses shall be the same as that allowed in the district courts in criminal cases, which fees and mileage shall be paid from any funds in the state treasury in the same manner as other expenses of the board are paid. In any case of disobedience to, or neglect of, any subpoena or subpoena duces tecum served upon any person, or the refusal of any witness to testify to any matter regarding which he may lawfully be interrogated, it shall be the duty of the district court of any county in this state in which such disobedience, neglect or refusal occurs, or any judge thereof, on application by the board to compel compliance with the subpoena by proceedings for contempt as in the case of disobedience of the requirements of a subpoena issued from such court or for refusal to testify therein. The licensed person accused in such formal contested case shall have the same right of subpoena upon making application to the board therefor.~~

~~(4) Seek injunctive relief prohibiting the unlawful practice of medicine.~~

~~(5) Make and enter into contracts.~~

~~(6) (3) Operate, manage, superintend and control the licensure of physicians and physician assistants.~~

~~(7) Develop and submit a proposed budget setting forth the amount necessary to perform its functions.~~

~~(8) (4) Perform such other duties as set forth in the laws of this state.~~

1 ~~(9)~~ (5) Provide such other services and perform such other functions as
2 are necessary to fulfill its responsibilities.

3 ~~(10)~~ Apply the provisions of section 12-117(5), Idaho Code, regarding
4 the assessment of costs and fees incurred in the investigation and prosecu-
5 tion or defense of a licensee under this chapter.

6 ~~(11)~~ (6) Share with the department of labor personal identifying infor-
7 mation of persons licensed under the provisions of this chapter necessary
8 for the department of labor to identify workforce shortage areas in Idaho.
9 The information provided to the department of labor concerning any person
10 licensed under this chapter shall remain confidential and not subject to
11 public disclosure, as required in section 74-106, Idaho Code.

12 ~~(12)~~ (7) (a) Collect and review data and information concerning mater-
13 nal mortality in the state of Idaho. The board shall have the power
14 throughout the state of Idaho to require the production of all informa-
15 tion relating to any incidence of maternal mortality.

16 (b) The board shall provide an annual summary report no later than Jan-
17 uary 31 each year to the legislature on the number of instances of mater-
18 nal mortality and other information as determined by the board.

19 SECTION 10. That Section 54-1806A, Idaho Code, be, and the same is
20 hereby amended to read as follows:

21 54-1806A. ~~MEDICAL DISCIPLINARY ENFORCEMENT.~~ COMMITTEE ON PROFES-
22 SIONAL DISCIPLINE. The board of medicine shall create a committee on
23 professional discipline which shall have the authority under the direct
24 supervision and control of the board to conduct professional disciplinary
25 enforcement investigations under this chapter and particularly under sec-
26 tions 54-1810 and 54-1814, Idaho Code, and to recommend appropriate action
27 to the board with respect thereto. The committee on professional discipline
28 shall have no authority to impose sanctions or limitations or conditions
29 on licenses issued under this chapter and shall be authorized only to make
30 recommendations to the board with respect thereto. The board shall provide
31 as follows respecting the committee on professional discipline:

32 (1) Membership. The committee shall consist of five (5) members ap-
33 pointed by the board: four (4) members licensed to practice medicine and
34 surgery in the state of Idaho, two (2) of whose terms shall expire at midnight
35 on June 30 in each of two (2) successive years, and one (1) member who is an
36 adult Idaho citizen of good reputation who shall not be licensed to practice
37 medicine in the state of Idaho, whose term shall expire at midnight on June
38 30 in the year in which no physician member's term shall expire. All terms of
39 appointment shall be for three (3) years. No member of the committee on pro-
40 fessional discipline may be appointed to serve more than two (2) terms.

41 (2) Chairman. The board of medicine shall designate one (1) member of
42 the committee as its chairman who shall serve and function in that capacity
43 for one (1) year or until a successor is duly appointed, whichever is later.

44 (3) Quorum. ~~Three (3)~~ A majority of the currently appointed members
45 shall constitute a quorum.

46 (4) Compensation. Members of the committee shall be compensated as
47 provided by section 59-509(p), Idaho Code, from the ~~state board of medicine~~
48 occupational licenses fund for expenses incurred in the course of serving on
49 the committee.

1 ~~(5) Conflicts and Disqualification. Members shall disqualify them-~~
 2 ~~selves and, on motion of any interested party may, on proper showing, be~~
 3 ~~disqualified in any proceeding concerning which they have an actual conflict~~
 4 ~~of interest or bias which interferes with their fair and impartial service.~~

5 ~~(6)~~ (5) Powers of the Committee on Professional Discipline. The com-
 6 mittee shall be empowered and authorized:

7 ~~(a) To investigate or inquire into misconduct or unprofessional be-~~
 8 ~~havior and to recommend that the board take such action with respect~~
 9 ~~thereto as it deems best in the interest of the public and justice, and~~
 10 ~~to obtain the assistance of staff and legal counsel hired by the board of~~
 11 ~~medicine to administer, process and assist in its work.~~

12 ~~(b)~~ (a) To recommend that the board initiate, for good cause, proceed-
 13 ings under the disabled physician and physician assistant act for any
 14 licensed physician or physician assistant incapacitated by illness,
 15 senility, disability, or addiction to drugs, intoxicants or other chem-
 16 ical or like substances.

17 ~~(c)~~ (b) To recommend that the board provide by order for reciprocal
 18 discipline in cases involving the discipline of a licensed physician
 19 or physician assistant disciplined in any other jurisdiction, provided
 20 that such licensee or applicant shall be entitled to appear and show
 21 cause why such order should not apply in his or her case.

22 ~~(7) Openness. All formal hearings under the board's direction and con-~~
 23 ~~trol shall be open to the public. Formal dispositions or other formal ac-~~
 24 ~~tions taken by the board under sections 54-1806 and 54-1806A, Idaho Code,~~
 25 ~~also shall be public. Proceedings, studies and investigations which do not~~
 26 ~~result in formal hearings, formal dispositions or other formal actions by~~
 27 ~~the board shall be conducted in private and shall remain confidential.~~

28 ~~(8) Voluntary Restriction of Licensure. A physician may request in~~
 29 ~~writing to the board a restriction of his license to practice medicine and~~
 30 ~~the board is authorized to grant such request and, if it deems it appropriate~~
 31 ~~to do so, to attach conditions to the licensure of the physician to practice~~
 32 ~~medicine. The board is also authorized in such cases thereafter to waive~~
 33 ~~the commencement of proceedings under this act or other provisions of the~~
 34 ~~medical practice act if in the interest of justice it determines that such~~
 35 ~~voluntary restrictions have rendered the same unnecessary. Removal of a~~
 36 ~~voluntary restriction on or suspension of licensure to practice medicine~~
 37 ~~shall be subject to the procedures for reinstatement elsewhere in this act~~
 38 ~~or by rule of the board; provided also, such reinstatements may be subject to~~
 39 ~~further conditions specially imposed in the individual case as a condition~~
 40 ~~of the order entered therein.~~

41 ~~(9) Adjudication of Discipline or Exoneration. The board shall make a~~
 42 ~~determination of the merits of all proceedings, studies and investigations~~
 43 ~~and, if grounds therefor are found to exist, may issue its order:~~

44 ~~(a) Revoking the respondent physician's or physician assistant's li-~~
 45 ~~cence to practice medicine;~~

46 ~~(b) Suspending or restricting the respondent physician's or physician~~
 47 ~~assistant's license to practice medicine;~~

48 ~~(c) Imposing conditions or probation upon the respondent physician or~~
 49 ~~physician assistant's license, including requiring rehabilitation or~~
 50 ~~remediation;~~

1 ~~(d) Issuing a public reprimand;~~

2 ~~(e) Imposing an administrative fine not to exceed ten thousand dollars~~
 3 ~~(\$10,000) for each count or offense; and/or~~

4 ~~(f) Assessing costs and attorney's fees against the respondent physi-~~
 5 ~~cian for any investigation and/or administrative proceeding.~~

6 Every person subject to disciplinary proceedings shall be afforded an op-
 7 portunity for hearing after reasonable notice, and all investigations,
 8 proceedings, and hearings conducted pursuant to this act shall be conducted
 9 in accordance with the administrative procedure act, chapter 52, title 67,
 10 Idaho Code, and any rules adopted by the board pursuant thereto.

11 ~~(10)~~ (6) Temporary Suspension or Restriction Pending Final Order. The
 12 board may temporarily suspend or restrict the license of any physician or
 13 physician assistant on its own motion or on verified petition of any person,
 14 pending further or final order, without prior hearing, simultaneously with
 15 or at any time after the institution of proceedings under this chapter, if
 16 it finds, that the physician or physician assistant, for reasons set forth
 17 by petition, affidavit, or other verified showing, or determined in reliance
 18 upon other reliable proof, is causing great harm to the public or to any pa-
 19 tient or group of patients, or is imminently likely to cause such harm, for
 20 which reason he or she and his or her license to practice medicine should be
 21 immediately suspended or restricted or he or she should be specially con-
 22 trolled, suspended in or restricted from the practice of medicine. There-
 23 after the physician or physician assistant may, for good cause, request dis-
 24 solution or amendment of any such temporary order by petition filed with the
 25 board, which petition shall be set for prompt hearing before a designated
 26 hearing officer, which officer shall forthwith hear said matter and report
 27 to the board his report and recommendations. The board, consistent with due
 28 process and the administrative procedure act, chapter 52, title 67, Idaho
 29 Code, shall rule on such petition for dissolution or amendment with the least
 30 amount of delay reasonably possible.

31 ~~(11) Judicial Review. All final decisions by the board shall be subject~~
 32 ~~to judicial review pursuant to the administrative procedure act, chapter 52,~~
 33 ~~title 67, Idaho Code.~~

34 ~~(12)~~ (7) Protected Action and Communication. There shall be no liabil-
 35 ity on the part of and no action for damages against:

36 (a) Any member of the board, the committee on professional discipline
 37 or the staff or officials thereof for any action undertaken or performed
 38 within the scope of the functions of the board or the committee under
 39 this chapter when acting in good faith and in the reasonable belief that
 40 such action is warranted; or

41 (b) Any person providing information or testimony to the board, the
 42 committee, or their staff or officials in good faith and in the reason-
 43 able belief that such information is accurate.

44 SECTION 11. That Section 54-2206, Idaho Code, be, and the same is hereby
 45 amended to read as follows:

46 54-2206. POWERS AND DUTIES OF THE BOARD. The board shall have the au-
 47 thority to administer, coordinate and enforce the provisions of this chap-
 48 ter. Such authority shall include, but not be limited to, the power to:

1 (1) Evaluate the qualifications of applicants for licensure, approve
 2 and administer examinations to test the knowledge and proficiency of appli-
 3 cants for licensure, and approve or deny the registration and issuance and
 4 renewal of licenses and permits;

5 ~~(2) Authorize all disbursements necessary to carry out the provisions~~
 6 ~~of this chapter;~~

7 ~~(3)~~ (2) Promulgate rules not inconsistent with the laws of this state
 8 which are necessary to carry out the provisions of this chapter;

9 ~~(4)~~ (3) Adopt rules providing for continuing education; and

10 ~~(5) Obtain restraining orders and injunctions prohibiting conduct in~~
 11 ~~violation of the provisions of this chapter, conduct investigations, issue~~
 12 ~~subpoenas, and examine witnesses and administer oaths, concerning practices~~
 13 ~~which are alleged to violate the provisions of this chapter;~~

14 ~~(6) Suspend or revoke or otherwise sanction licensees in the manner~~
 15 ~~provided in this chapter, or place a person holding a license under this~~
 16 ~~chapter on probation;~~

17 ~~(7) Require as a condition of receiving or retaining a license issued~~
 18 ~~under this chapter that restitution be paid to a consumer;~~

19 ~~(8)~~ (4) Require the inspection of testing equipment and facilities of
 20 persons engaging in any practice pursuant to this chapter; .

21 ~~(9) As the board deems reasonable, take notice of and give effect to~~
 22 ~~prior licenses issued to physical therapists and physical therapist assis-~~
 23 ~~tants in the state of Idaho by the state board of medicine and such other ac-~~
 24 ~~tions, proceedings, orders or decisions of the state board of medicine in-~~
 25 ~~volving complaints, investigations, discipline or other matters concerning~~
 26 ~~physical therapists or physical therapist assistants; and~~

27 ~~(10) Authorize, by written agreement, the division of occupational and~~
 28 ~~professional licenses to act as its agent in its interest.~~

29 SECTION 12. That Section 54-2305, Idaho Code, be, and the same is hereby
 30 amended to read as follows:

31 54-2305. BOARD OF PSYCHOLOGIST EXAMINERS -- POWERS. The board of psy-
 32 chologist examiners shall have the following powers:

33 (1) To pass upon the qualifications and fitness of applicants for li-
 34 censes, reciprocal licenses, certification and provisional certification
 35 of prescriptive authority; and, at its option, to adopt and revise rules re-
 36 quiring applicants to pass examinations relating to their qualifications as
 37 a prerequisite to the issuance of licenses.

38 (2) To adopt and, from time to time, revise such rules ~~in accordance~~
 39 ~~with the provisions of chapter 52, title 67, Idaho Code, and not inconsis-~~
 40 ~~tent with the law, subject to legislative approval, as may be necessary to~~
 41 ~~carry into effect the provisions of this chapter. Such rules shall include,~~
 42 ~~but need not be limited to, a code of ethics for psychologists in the state~~
 43 ~~consistent with the current, and as future amended, ethical standards for~~
 44 ~~psychologists of the American psychological association and the educational~~
 45 ~~and professional qualifications of applicants for licensing under this~~
 46 ~~chapter.~~

47 (3) To examine for, deny, approve, issue, revoke, suspend and renew the
 48 licenses, permits, and certifications of psychologists, service extenders,

1 and psychologist applicants pursuant to this chapter, and to conduct hear-
2 ings in connection therewith.

3 (4) To ~~conduct hearings~~ review investigations upon complaints concern-
4 ing violations of the provisions of, and the rules adopted pursuant to, this
5 chapter and cause the prosecution and enjoinder of all such violations.

6 ~~(5) The board, or its duly appointed hearing officer, shall have the~~
7 ~~power in any disciplinary proceeding under this chapter to administer oaths,~~
8 ~~take depositions of witnesses within or without the state in the manner pro-~~
9 ~~vided by law in civil cases, and may apply to any district court of this state~~
10 ~~for a subpoena to require the attendance of such witnesses and the produc-~~
11 ~~tion of such books, records, and papers as it deems necessary. The fees and~~
12 ~~mileage of the witnesses shall be the same as that allowed in district courts~~
13 ~~in criminal cases, which fees and mileage shall be paid in the same manner as~~
14 ~~other expenses of the board are paid. In any case of disobedience to, or ne-~~
15 ~~glect of, any subpoena or subpoena duces tecum served upon any person, or the~~
16 ~~refusal of any witness to testify to any matter regarding which he may be law-~~
17 ~~fully interrogated, it shall be the duty of any district court in this state,~~
18 ~~on application by the board, to compel compliance with the subpoena by pro-~~
19 ~~ceedings for contempt, as in the case of disobedience of the requirements of~~
20 ~~the subpoena issued from such court for refusal to testify therein. The li-~~
21 ~~icensed person accused in such proceedings shall have the same right of sub-~~
22 ~~poena.~~

23 ~~(6) Proceedings before the board and judicial review of the action of~~
24 ~~the board shall be governed by the provisions of chapter 52, title 67, Idaho~~
25 ~~Code.~~

26 ~~(7) To authorize, by written agreement, the division of occupational~~
27 ~~and professional licenses as agent to act in its interest.~~

28 ~~(8)~~ (5) To adopt a rule requiring continuing education as a condition of
29 continued licensure and certification.

30 ~~(9)~~ (6) To adopt rules allowing for a temporary permit to individuals
31 licensed as psychologists in another state authorizing such individuals to
32 practice psychology in Idaho for a period not to exceed thirty (30) days pur-
33 suant to such terms and requirements as set forth in the rules.

34 ~~(10)~~ (7) To establish by rule an inactive license status.

35 ~~(11)~~ (8) To establish by rule the standards and requirements for the use
36 of communication technology in the practice of psychology, including super-
37 vision.

38 ~~(12)~~ (9) To establish by rule certification and provisional certi-
39 fication of prescriptive authority pursuant to sections 54-2316 through
40 54-2319, Idaho Code.

41 ~~(13)~~ (10) To establish by rule a limited formulary or formularies for
42 prescribing use by holders of certification and provisional certification
43 of prescriptive authority.

44 ~~(14)~~ (11) To establish by rule the permitting of service extenders.

45 SECTION 13. That Section 54-2412, Idaho Code, be, and the same is hereby
46 amended to read as follows:

47 54-2412. REVOCATION OR SUSPENSION OF LICENSE -- POWERS OF BOARD --
48 PROCEDURES FOR DISCIPLINARY PROCEEDINGS. ~~(1)~~ The board shall have the power
49 to revoke, suspend, refuse to issue, refuse to renew, or otherwise limit any

1 license or certificate issued pursuant to the provisions of this chapter for
2 any of the following:

3 ~~(a)~~ (1) Procuring a license or registration by knowingly making a false
4 statement, submitting false information, or refusing to provide complete
5 information in response to a question in an application for licensure or
6 through any form of fraud or misrepresentation;

7 ~~(b)~~ (2) Being convicted of a felony;

8 ~~(c)~~ (3) Misrepresentation or fraudulent representation in the perfor-
9 mance of any duty, conduct or activity regulated under this chapter;

10 ~~(d)~~ (4) Violating the provisions of this chapter or any rules of the
11 board or any code of conduct or ethical standards adopted by the board;

12 ~~(e)~~ (5) Being negligent or incompetent; or

13 ~~(f)~~ (6) Failing to provide appropriate and personal supervision, if
14 acting as the designated responsible charge operator, to any person gaining
15 experience under the provisions of this chapter.

16 ~~(2) The board shall have the power to administer oaths, take deposi-~~
17 ~~tions of witnesses within or without the state in the manner provided by law~~
18 ~~in civil cases, and, within the state of Idaho, to require the attendance of~~
19 ~~such witnesses and the production of such books, records and papers as it may~~
20 ~~desire, relevant to any hearing before it of any matter it has authority to~~
21 ~~investigate, and for that purpose the board may issue a subpoena for any wit-~~
22 ~~ness or a subpoena duces tecum to compel the production of books, records or~~
23 ~~papers directed to the sheriff of any county of the state of Idaho where such~~
24 ~~witness resides or may be found, which subpoena shall be served and returned~~
25 ~~in the same manner as a subpoena in a criminal case.~~

26 ~~(3) The procedures for disciplinary proceedings shall be in compliance~~
27 ~~with the Idaho administrative procedure act, the Idaho rules of administra-~~
28 ~~tive procedure, and the division of occupational and professional licenses.~~

29 SECTION 14. That Section 54-2607, Idaho Code, be, and the same is hereby
30 amended to read as follows:

31 54-2607. ADMINISTRATOR OF THE DIVISION OF OCCUPATIONAL AND PROFES-
32 SIONAL LICENSES -- POWERS AND DUTIES. (1) The administrator shall exercise
33 such powers and duties as are reasonably necessary to enforce the minimum
34 standards provided in this chapter, and he may among other things:

35 (a) Prescribe and establish procedures to effectuate the efficient en-
36 forcement of this chapter not herein prescribed-;

37 ~~(b) Serve as secretary to the Idaho plumbing board.~~

38 ~~(c)~~ (b) Appoint licensed staff inspectors who shall be authorized to
39 enter and inspect by and through a properly identified person, at rea-
40 sonable hours, plumbing and plumbing systems-; and

41 ~~(d)~~ (c) Make plumbing inspections for another state or local jurisdic-
42 tion upon request by an appropriate building official. Such inspec-
43 tions shall be made in accordance with the applicable plumbing codes of
44 the requesting jurisdiction. Fees charged for such inspection services
45 shall be as provided in the rules promulgated by the board.

46 ~~(e) Summon witnesses to appear and testify before him on any matter~~
47 ~~within the provisions of this chapter. No person shall be required to~~
48 ~~testify outside the county wherein he resides or where his principal~~
49 ~~place of business is located. Such summons to testify shall be issued~~

and served in like manner as a subpoena to witness issued from the district court or in other manner consistent with the procedure of the division of occupational and professional licenses. In case any witness shall fail or refuse to appear and testify upon being summoned as herein provided, the clerk of the district court of the county shall, upon demand by the administrator or his designated agent, issue a subpoena reciting the demand therefor and summoning the witness to appear and testify at a time and place fixed. Violation of such subpoena or disobedience thereto shall be deemed and punished as a violation of any other subpoena issued from the district court.

(f) Administer oaths and take affirmations of witnesses appearing before him and have the power to appoint competent persons to issue subpoenas, administer oaths and take testimony.

(g) Impose civil penalties as provided in this chapter and the rules of the Idaho plumbing board.

(h) In addition to any other penalties specified in this chapter, whenever any person violates the provisions of this chapter and the rules of the Idaho plumbing board, the administrator may maintain an action in the name of the state of Idaho to enjoin that person from any further violations. Such action may be brought either in the county in which the acts are claimed to have been or are being committed, or in the county where the defendant resides, or in Ada county.

(i) Upon the filing of a certified complaint in the district court, the court, if satisfied that the acts complained of have been, probably are being, or may be committed, may issue a temporary restraining order, or a preliminary injunction, or both, without bond, enjoining the defendant from the commission of any such act or acts constituting the violation.

(ii) A copy of the complaint shall be served upon the defendant and the proceedings shall thereafter be conducted as in other similar civil actions.

(iii) If the commission of the act or acts is established, the court shall enter a decree permanently enjoining the defendant from committing such act or acts. If an injunction issued under the provisions of this section is violated, the court, or the judge thereof at chambers, may summarily try and punish the offender for contempt of court.

(2) It shall be the duty of the administrator to give notice to cities that supply sewer service to areas outside their city limits and who have requested in writing such notice from the administrator of all permits issued relative to sewer installations. The notice shall be given within ten (10) days from the date the permit was requested for such installation. The notice shall contain a map of the physical location of the installation and reference to the date of inspection if the city so requests.

SECTION 15. That Section 54-2808, Idaho Code, be, and the same is hereby amended to read as follows:

54-2808. POWERS AND DUTIES OF BOARD. (1) The board shall have the power to adopt and amend rules including, but not limited to, a code of ethics and standards of conduct which may be reasonably necessary for the proper per-

1 performance of its duties and the administration of this chapter and the regu-
 2 lation of proceedings before the board. ~~It shall adopt and have an official~~
 3 ~~seal. It shall have power to provide an office, office equipment and facili-~~
 4 ~~ties and such books and records as may be reasonably necessary for the proper~~
 5 ~~performance of its duties. The board may, by written agreement, authorize~~
 6 ~~the division of occupational and professional licenses as agent to act in its~~
 7 ~~interest.~~

8 (2) The board is authorized to enter into mutual aid agreements, inter-
 9 state compacts, contracts or agreements to facilitate the practice and regu-
 10 lation of geology in this state.

11 ~~(3) In carrying into effect the provisions of this chapter, the board,~~
 12 ~~under the hand of its chairman and the seal of the board, may request the at-~~
 13 ~~tendance of witnesses and the production of such books, records and papers as~~
 14 ~~may be required at any hearing before it, and for the purpose of disciplinary~~
 15 ~~matters pursuant to this chapter the board may request a district court to~~
 16 ~~issue a subpoena for any witness or a subpoena duces tecum to compel the pro-~~
 17 ~~duction of any books, records or papers. Subpoenas shall be directed to the~~
 18 ~~sheriff of any county in the state of Idaho where such witness resides or may~~
 19 ~~be found. Subpoenas shall be served and returned in the same manner as sub-~~
 20 ~~poenas in a criminal case. The fees and mileage of the sheriff and witnesses~~
 21 ~~shall be the same as that allowed in district court criminal cases, which~~
 22 ~~fees and mileage shall be paid from any funds in the state treasury available~~
 23 ~~therefor in the same manner as other expenses of the board are paid. Dis-~~
 24 ~~obedience of any subpoena issued by the district court or the refusal by any~~
 25 ~~witness in failing to testify concerning any matter regarding which he may~~
 26 ~~lawfully be interrogated, or the failure to produce any books, records or pa-~~
 27 ~~pers, shall constitute a contempt of the district court of any county where~~
 28 ~~such disobedience or refusal occurs, and said court, or any judge thereof, by~~
 29 ~~proceedings for contempt in said court, may, if such contempt be found, pun-~~
 30 ~~ish said witness as in any other case of disobedience of a subpoena issued~~
 31 ~~from such court or refusal to testify therein.~~

32 ~~(4) The board is hereby authorized in the name of the state to apply for~~
 33 ~~relief by injunction in the established manner provided in cases of civil~~
 34 ~~procedure, without bond, to enforce the provisions of this chapter or to re-~~
 35 ~~strain any violation thereof.~~

36 SECTION 16. That Section 54-2819, Idaho Code, be, and the same is hereby
 37 amended to read as follows:

38 54-2819. DISCIPLINE. ~~(1) Grounds for discipline. The board shall have~~
 39 ~~the power to deny any application for or renewal of a certificate of regis-~~
 40 ~~tration or to revoke, suspend or otherwise discipline any registrant or reg-~~
 41 ~~istration issued pursuant to this chapter and to limit or restrict the prac-~~
 42 ~~tice of any registrant upon a determination by the board that the person take~~
 43 ~~disciplinary action upon a determination that an individual:~~

44 ~~(a) (1) Made, or caused to be made, a false, fraudulent or forged state-~~
 45 ~~ment, document, credentials or representation in procuring or attempting to~~
 46 ~~procure a certificate of registration to practice geology;~~

47 ~~(b) (2) Practiced geology under a false or assumed name;~~

1 ~~(e)~~ (3) Was convicted, found guilty, received a withheld judgment or
 2 suspended sentence in this or any other state of action constituting a crime
 3 that is deemed relevant in accordance with section 67-9411(1), Idaho Code;

4 ~~(d)~~ (4) Violated the provisions of this chapter or rules, standards of
 5 conduct and practice, or any ethical codes as may be adopted by the board;

6 ~~(e)~~ (5) Is or has been grossly negligent, incompetent, or reckless in
 7 the practice of geology; or

8 ~~(f)~~ (6) Has had a license, certificate, or registration to practice as
 9 a professional geologist suspended or revoked in any jurisdiction. A certi-
 10 fied copy of the order of suspension or revocation shall be prima facie evi-
 11 dence of such suspension or revocation.

12 ~~(2) Proceedings. Every person subject to disciplinary proceedings~~
 13 ~~shall be afforded an opportunity for hearing after reasonable notice.~~

14 ~~(a) All proceedings hereunder shall be in accordance with chapter 52,~~
 15 ~~title 67, Idaho Code, and the Idaho rules of administrative procedure,~~
 16 ~~as provided in section 67-5206, Idaho Code.~~

17 ~~(b) Hearings shall be conducted by the board or by persons appointed by~~
 18 ~~the board to conduct hearings and receive evidence.~~

19 ~~(3) Probation. Any order of the board entered under this section may be~~
 20 ~~withheld or suspended for a probationary period to be fixed by the board on~~
 21 ~~such terms and conditions as may be appropriate in order to regulate, monitor~~
 22 ~~or supervise the practice of geology by the registrant subject to such order~~
 23 ~~for the prescribed probationary period.~~

24 ~~(4) Subsequent review. Any order of the board entered under this sec-~~
 25 ~~tion may be withdrawn, reversed, modified or amended upon a showing by the~~
 26 ~~person subject to the order that the grounds for discipline no longer ex-~~
 27 ~~ist or that he is rehabilitated, qualified and competent to practice profes-~~
 28 ~~sional geology and that he is not likely to violate the provisions of this~~
 29 ~~section or rules adopted hereunder in the future.~~

30 ~~(5) Costs and fees. The board may, pursuant to an order of discipline~~
 31 ~~or as a condition to withdrawal, reversal, modification or amendment of the~~
 32 ~~order, require the person to pay all or part of the costs and fees incurred by~~
 33 ~~the board in proceedings upon which the order was entered.~~

34 ~~(6) Administrative fines. The board may, pursuant to an order of disci-~~
 35 ~~pline, require the payment of an administrative fine not to exceed one thou-~~
 36 ~~sand dollars (\$1,000) for each violation of the provisions of this section or~~
 37 ~~rules adopted hereunder.~~

38 SECTION 17. That Section 54-2910, Idaho Code, be, and the same is hereby
 39 amended to read as follows:

40 54-2910. POWERS AND DUTIES OF THE BOARD. The board shall have the au-
 41 thority to administer, coordinate and enforce the provisions of this chapter
 42 including, but not limited to:

43 (1) Evaluate the qualifications of applicants for licensure, approve
 44 and administer examinations to test the knowledge and proficiency of appli-
 45 cants for licensure, and approve or deny the registration and issuance and
 46 renewal of licenses and permits;

47 ~~(2) Authorize all disbursements necessary to carry out the provisions~~
 48 ~~of this chapter;~~

1 ~~(3)~~ (2) Promulgate rules not inconsistent with the laws of this state
 2 which are necessary to carry out the provisions of this chapter including,
 3 but not limited to, ethical standards of practice;

4 ~~(4)~~ (3) Adopt rules allowing for continuing education; and
 5 ~~(5)~~ Obtain restraining orders and injunctions prohibiting conduct in
 6 violation of the provisions of this chapter, conduct investigations, issue
 7 subpoenas, examine witnesses and administer oaths, concerning practices
 8 which are alleged to violate the provisions of this chapter;

9 ~~(6)~~ Suspend or revoke or otherwise sanction licenses in the manner pro-
 10 vided in this chapter, or place a person holding a license under this chapter
 11 on probation;

12 ~~(7)~~ Require as a condition of receiving or retaining a license issued
 13 under this chapter that restitution be paid to a consumer;

14 ~~(8)~~ (4) Require the inspection of testing equipment and facilities of
 15 persons engaging in any practice pursuant to this chapter; and.

16 ~~(9)~~ Authorize, by written agreement, the division of occupational and
 17 professional licenses to act as its agent in its interest.

18 SECTION 18. That Section 54-3003, Idaho Code, be, and the same is hereby
 19 amended to read as follows:

20 54-3003. QUALIFICATIONS -- EXAMINATIONS -- BOARD -- LICENSES -- FEES
 21 -- ENDORSEMENT -- EXEMPTIONS -- INDIVIDUALS, PARTNERSHIPS AND CORPORATIONS
 22 -- RESTRICTION ON USE OF NAME -- SEAL. (1) Application and practice. In or-
 23 der to safeguard human health and property, and to promote the public wel-
 24 fare, any person in either public or private capacity practicing or offer-
 25 ing to practice landscape architecture shall be required to submit evidence
 26 of qualifications to practice and shall be issued a license under the provi-
 27 sions of this chapter.

28 (2) Qualifications. For licensure as a landscape architect, evidence
 29 must be submitted to the board that the applicant:

30 (a) Is eighteen (18) years of age or older;

31 (b) Has graduated from a college or school of landscape architecture
 32 approved by the board. In lieu of graduation from an approved college
 33 or school of landscape architecture, an applicant may present evidence
 34 of at least eight (8) years of actual, practical experience or education
 35 in landscape architecture of a grade and character satisfactory to the
 36 board, as established by rule, that the applicant is competent to prac-
 37 tice landscape architecture; and

38 (c) Has successfully passed an examination approved by the board.

39 (3) Examinations. The board shall adopt rules covering the subjects
 40 and scope of the examinations. Every applicant for license as a landscape
 41 architect shall be required, in addition to all other requirements, to es-
 42 tablish by written examination his competency to plan, design, specify and
 43 supervise the installation and construction of landscape architectural
 44 projects. Each written examination may be supplemented by such oral exami-
 45 nations as the board may determine.

46 (4) Board powers. The board shall have, in addition to the powers set
 47 forth elsewhere in this chapter, the following powers and duties:

~~(a) To authorize, by written agreement, the division of occupational and professional licenses to act as agent in its interest and to make such rules as shall be necessary in the performance of its duties;~~

~~(b) (a) To adopt rules of professional responsibility; and~~

~~(e) (b) To adopt rules requiring the completion of continuing education by each licensee on a biennial basis;~~

~~(d) The board, or its duly appointed hearing officer, shall have the power in any disciplinary proceeding against a licensee under this chapter to administer oaths, take depositions of witnesses within or outside of the state in the manner provided by law in civil cases, and to apply to any district court of this state for a subpoena to require the attendance of such witnesses and the production of such books, records and papers as the board deems necessary in a disciplinary proceeding against a licensee. The fees and mileage of the witnesses shall be the same as that allowed in the district courts in criminal cases, which fees and mileage shall be paid in the same manner as other board expenses. In any case of disobedience to, or neglect of, any subpoena or subpoena duces tecum served upon any person, or refusal of any witness to testify to any matter about which he may lawfully be interrogated, it shall be the duty of any district court in this state on application by the board to compel compliance with the subpoena by conducting proceedings for contempt, as in the case of disobedience of the requirements of a subpoena issued from such court or for refusal to testify therein. The licensed person accused in such proceedings shall have the same right of subpoena.~~

~~(5) Renewal and reinstatement -- revenue.~~

~~(a) All licenses issued under the provisions of this chapter shall be subject to biennial renewal and shall expire unless renewed in the manner prescribed by the board regarding applications for renewal, continuing education, and fees. License renewal and reinstatement shall be in accordance with section 67-2614, Idaho Code.~~

~~(b) (5) Amounts Fees.~~ The amount of fees shall be as determined by the board within the following stated limits:

~~(i) (a) The application fee not to exceed two hundred dollars (\$200).~~

~~(ii) The fee for examination to be established by board rule not to exceed that charged by the council of landscape architectural registration boards plus a fifty-dollar (\$50.00) processing fee. The board may recover the actual costs associated with an applicant's review of a failed examination.~~

~~(iii) (b) The fee for an original license and the biennial renewal license fee not to exceed four hundred dollars (\$400).~~

~~(c) The fee for reinstatement of a license as provided in section 67-2614, Idaho Code.~~

~~(e) Refund. Fees shall be nonrefundable.~~

~~(d) Deposit. All fees received under the provisions of this chapter shall be deposited in the state treasury to the credit of the occupational licenses fund, and all costs and expenses incurred by the board under the provisions of this chapter shall be a charge against and paid from said fund for such purposes, and the funds collected hereunder shall be immediately available for the administration of this chapter,~~

1 the provisions of any other law notwithstanding. In no instance will
 2 the occupational licenses fund be obligated to pay any claims that in
 3 aggregate with claims already paid exceed the income to the occupa-
 4 tional licenses fund, which has been derived by the application of this
 5 chapter.

6 ~~(e) Appropriation. The money paid into the occupational licenses fund~~
 7 ~~is continuously appropriated to the board for expenditure in the manner~~
 8 ~~prescribed herein to defray the expenses of the board and in carrying~~
 9 ~~out and enforcing the provisions of this chapter.~~

10 (6) Endorsement provisions. The board may approve for licensure:

11 (a) An individual with a current council of landscape architectural
 12 registration boards (CLARB) certification; or

13 (b) With limited examination, an applicant who is legally registered
 14 or licensed as a landscape architect in any other state or country whose
 15 requirements for registration or licensure are at least substantially
 16 equivalent to the requirements of this state.

17 (7) Exemptions.

18 (a) None of the provisions of this chapter shall prevent employees of
 19 those lawfully practicing as landscape architects from acting under the
 20 instruction, control or supervision of their employers.

21 (b) None of the provisions of this chapter shall apply to the busi-
 22 ness conducted in this state by any land use planner, horticulturist,
 23 nurseryman, or landscape nurseryman, gardener, landscape gardener,
 24 ~~landscape designer,~~ or landscape contractor, as these terms are gen-
 25 erally used, or any other person, including, but not limited to, their
 26 right to plan and supervise in connection therewith, except that no such
 27 person shall use the designation "landscape architect," "landscape ar-
 28 chitecture," or any description tending to convey the impression that
 29 they are a licensed landscape architect unless they are registered as
 30 provided in this chapter.

31 (c) This chapter shall not apply to ~~architects, professional engi-~~
 32 ~~neers, geologists, and land surveyors~~ any other professionals licensed
 33 to practice their respective professions.

34 (8) This chapter applies to individuals only.

35 (a) All licenses shall be issued to individuals only, but nothing
 36 contained in this chapter shall prevent a duly licensed landscape ar-
 37 chitect from rendering professional services for a corporation, firm,
 38 partnership or association.

39 (b) ~~Partners.~~ Each partner in a partnership of landscape architects
 40 shall be licensed to practice landscape architecture or to provide al-
 41 lied professional services as defined in section 30-21-901, Idaho Code.
 42 Subject to this requirement, a partnership of landscape architects may
 43 use a partnership name if such name consists of:

44 (i) The names of two (2) or more landscape architects; or

45 (ii) The names of one (1) or more landscape architects and one (1)
 46 or more professional engineers or architects.

47 (c) Any person applying to the official of any county or city for a
 48 business license to practice landscape architecture shall at the time
 49 of such application exhibit to such official satisfactory evidence that
 50 such applicant possesses a current Idaho license. The business license

1 shall not be granted until such evidence is presented, any contrary pro-
 2 vision of any special act or general act notwithstanding.

3 (9) Qualifications for practice -- seal.

4 (a) No person shall use the designation "landscape architect" or "land-
 5 scape architecture" or advertise any title or description tending to
 6 convey the impression that the person is a landscape architect, or
 7 practicing landscape architecture, unless such person is a licensed
 8 landscape architect. Every holder of a license shall display it in the
 9 principal office, place of business, or place of employment.

10 (b) Every landscape architect shall have a seal approved by the board
 11 that contains the name of the landscape architect and the words "Li-
 12 censed Landscape Architect, State of Idaho," and such other words or
 13 figures as the board may deem necessary and prescribe.

14 (i) The seal may be a rubber stamp or an electronically applied
 15 seal. Whenever the seal is applied, the licensee's written sig-
 16 nature and the date shall be adjacent to or across the seal. The
 17 seal, signature and date shall be placed on all final reports,
 18 drawings and title pages of specifications, design information
 19 and calculations. Whenever presented to a client or to the public,
 20 such documents that are not final and do not contain a seal, signa-
 21 ture and date shall be clearly marked as "preliminary," "draft,"
 22 "not for construction" or similar words to distinguish the docu-
 23 ments from a finished product.

24 (ii) The application of the licensee's seal, signature and the
 25 date shall constitute certification that the work thereon was pre-
 26 pared by such landscape architect or under the supervision of such
 27 landscape architect. Each plan or drawing sheet shall be sealed
 28 and signed by the licensee or the licensee's agent responsible for
 29 each sheet. The principal landscape architect in charge shall
 30 sign and seal the title or first sheet. Copies of electronically
 31 produced documents listed in subparagraph (i) of this paragraph
 32 that are distributed for informational use, such as for bidding
 33 purposes or working copies, may be issued with the licensee's
 34 seal and a notice that the original document is on file with the
 35 licensee's signature and date. The words "original signed by:"
 36 and "date signed:" shall be placed adjacent to or across the seal
 37 of the electronic original. The storage location of the original
 38 documents shall also be provided. Only the title page of reports,
 39 specifications and like documents need bear the seal and signature
 40 of the licensee and the date.

41 ~~(iii) Nothing contained herein shall be construed to permit a~~
 42 ~~landscape architect to practice as a licensed architect, a li-~~
 43 ~~censed professional engineer or a licensed land surveyor as these~~
 44 ~~professions are defined by Idaho Code; provided however, nothing~~
 45 ~~contained herein shall be construed to prevent a landscape archi-~~
 46 ~~tect from practicing landscape architecture.~~

47 SECTION 19. That Section 54-3005, Idaho Code, be, and the same is hereby
 48 amended to read as follows:

1 54-3005. VIOLATIONS AND PENALTIES. (1) It shall be a violation for any
2 person to:

- 3 (a) Offer to practice or represent oneself as entitled to practice
- 4 landscape architecture, unless duly licensed under this chapter;
- 5 (b) Attempt to use the license of another;
- 6 (c) Give false or forged evidence to the board or any member thereof in
- 7 obtaining a license;
- 8 (d) Falsely impersonate any other practitioner, of like or different
- 9 name; or
- 10 (e) Otherwise violate any of the provisions of this chapter.

11 (2) Such violation shall be a misdemeanor. Each act under this section
12 shall be treated as a separate offense.

13 ~~(2) Prosecution of violations. All violations of this chapter when re-~~
14 ~~ported to the board and duly substantiated by affidavits or other satisfac-~~
15 ~~tory evidence shall be investigated by the board, and if the report is found~~
16 ~~to be true and the evidence substantiated, the board shall report such vio-~~
17 ~~lations to the county attorney of the county in which the violation occurred~~
18 ~~and request prompt prosecution.~~

19 SECTION 20. That Section 54-3309, Idaho Code, be, and the same is hereby
20 amended to read as follows:

21 54-3309. BOARD POWERS AND DUTIES. The board shall have the following
22 powers and duties:

- 23 (a) To determine the qualifications of persons applying for licenses
- 24 under this chapter;
- 25 (b) To prescribe, administer and determine examinations and a passing
- 26 grade for licenses under this chapter;
- 27 (c) To collect and adjust fees and charges prescribed in this chapter to
- 28 cover the operating expenses of the board as may become necessary from time
- 29 to time;
- 30 (d) To issue licenses for the practice of denturistry under the condi-
- 31 tions prescribed in this chapter;
- 32 ~~(e) To revoke or suspend denturists' licenses in the manner prescribed~~
33 ~~by this chapter;~~
- 34 ~~(f) To administer oaths and subpoena witnesses for the purpose of car-~~
35 ~~rying out the activities authorized under this chapter;~~
- 36 ~~(g)~~ (e) To make rules and regulations pursuant to chapter 52, title 67,
- 37 Idaho Code, to carry out the intents and purposes of this chapter; and
- 38 ~~(h)~~ (f) To appoint committees and chairpersons and to delegate respon-
- 39 sibilities to them as the need arises from time to time;
- 40 ~~(i) To authorize, by written agreement, the division of occupational~~
41 ~~and professional licenses to act as agent in its interest.~~

42 SECTION 21. That Section 54-4007, Idaho Code, be, and the same is hereby
43 amended to read as follows:

44 54-4007. POWERS AND DUTIES OF THE BOARD. (1) The board shall have the
45 authority to:

- 46 ~~(1)~~ (a) Determine the qualifications of persons applying for licensure
- 47 pursuant to this chapter and to define, by rule, the appropriate scope

1 of massage therapy in this state, provided however, that the scope of
 2 practice may not exceed that defined in section 54-4002(7), Idaho Code;
 3 ~~(2) Authorize, by written agreement, the division of occupational and~~
 4 ~~professional licenses as agent to act in its interest;~~
 5 ~~(3) (b)~~ Promulgate such rules as are necessary for the administration
 6 of this chapter, including standards of professional conduct;
 7 ~~(4) Conduct investigations and hold hearings and compel the attendance~~
 8 ~~of witnesses and the production of papers at such investigations or hear-~~
 9 ~~ings;~~
 10 ~~(5) (c)~~ Collect fees and other funds as prescribed by this chapter;
 11 ~~(6) (d)~~ Contract and pursue other matters lawful in this state relating
 12 to massage therapy;
 13 ~~(7) (e)~~ Provide such other services and perform such other functions as
 14 are necessary and desirable to fulfill its purposes;
 15 ~~(8) (f)~~ Establish requirements for renewal of license and approval of
 16 continuing education courses as set forth in section 67-2614, Idaho
 17 Code;
 18 ~~(9) (g)~~ Establish rules for the approval of massage therapy entry-level
 19 educational standards but must remain consistent with curriculum re-
 20 quirements in this chapter, or rules promulgated pursuant thereto;
 21 ~~(10) (h)~~ Establish requirements for a student tuition credit program;
 22 and
 23 ~~(11) (i)~~ Establish requirements for a temporary license and provi-
 24 sional permit.
 25 (2) The registration of massage schools shall remain with the state
 26 board of education in accordance with chapter 24, title 33, Idaho Code.

27 SECTION 22. That Section 54-4107, Idaho Code, be, and the same is hereby
 28 amended to read as follows:

29 54-4107. DISCIPLINARY PROCEEDINGS. ~~(1)~~ The board may refuse to issue,
 30 refuse to renew or may suspend, revoke or otherwise sanction any license or
 31 certificate issued under this chapter for any of the following:
 32 ~~(a)~~ (1) Procuring licensure or certification pursuant to this chapter
 33 by knowingly making a false statement, submitting false information, refus-
 34 ing to provide complete information in response to a question in an applica-
 35 tion for licensure or certification or through any form of fraud or misrepre-
 36 sentation;
 37 ~~(b)~~ (2) Being convicted of a felony;
 38 ~~(c)~~ (3) Making any substantial misrepresentation, false promises or
 39 false or fraudulent representation;
 40 ~~(d)~~ (4) Violating the provisions of this chapter or any rules of the
 41 board;
 42 ~~(e)~~ (5) Being negligent or incompetent in developing an appraisal, in
 43 preparing an appraisal report or in communicating an appraisal;
 44 ~~(f)~~ (6) Accepting an appraisal assignment when the employment is con-
 45 tingent upon the licensed or certified appraiser reporting a predetermined
 46 estimate, analysis or opinion, or where the fee to be paid is contingent upon
 47 the opinion, conclusion, or valuation reached, or upon the consequences re-
 48 sulting from the appraisal assignment;

1 ~~(g)~~ (7) Violating the confidential nature of governmental records to
2 which he gained access through employment as a licensed or certified ap-
3 praiser by a governmental agency;

4 ~~(h)~~ (8) Entering into an agreement to perform specialized services for
5 a contingent fee and failing to clearly state this fact in each written and
6 oral report;

7 ~~(i)~~ (9) Failing as a state-licensed or certified real estate appraiser
8 to actively and personally supervise any person not licensed or certified
9 under the provisions of this chapter who assists said state licensed or cer-
10 tified appraiser in performing real estate appraisals;

11 ~~(j)~~ (10) Having had a license or certificate to practice revoked, sus-
12 pended or otherwise sanctioned by any state; or

13 ~~(k)~~ (11) Failing to comply with a board order entered in a disciplinary
14 matter.

15 ~~(2) The board, or its duly appointed hearing officer, shall have the~~
16 ~~power in any disciplinary proceeding under this chapter to administer oaths,~~
17 ~~take depositions of witnesses within or without the state in the manner pro-~~
18 ~~vided by law in civil cases, and may apply to any district court of this state~~
19 ~~for a subpoena to require the attendance of such witnesses and the produc-~~
20 ~~tion of such books, records and papers as it deems necessary. The fees and~~
21 ~~mileage of the witnesses shall be the same as that allowed in the district~~
22 ~~courts in civil cases, which fees and mileage shall be paid in the same man-~~
23 ~~ner as other expenses of the board are paid. In any case of disobedience to,~~
24 ~~or neglect of, any subpoena or subpoena duces tecum served upon any person,~~
25 ~~or the refusal of any witness to testify to any matter regarding which he may~~
26 ~~lawfully be interrogated, it shall be the duty of any district court in this~~
27 ~~state on application by the board to compel compliance with the subpoena by~~
28 ~~proceedings for contempt, as in the case of disobedience of the requirements~~
29 ~~of a subpoena issued from such court or for refusal to testify therein. The~~
30 ~~state-licensed or certified person accused in such proceedings shall have~~
31 ~~the same right of subpoena.~~

32 ~~(3) Except as otherwise provided in this chapter, all proceedings under~~
33 ~~this chapter shall be in accordance with the administrative procedure act,~~
34 ~~chapter 52, title 67, Idaho Code.~~

35 SECTION 23. That Section 54-4311, Idaho Code, be, and the same is hereby
36 amended to read as follows:

37 54-4311. SUSPENSION AND REVOCATION OF LICENSE OR PERMIT -- REFUSAL TO
38 RENEW. ~~(1)~~ Subject to the provisions of chapter 52, title 67, Idaho Code, the
39 board may deny a license or permit or refuse to renew a license or permit, may
40 suspend or revoke a license or permit, or may impose probationary conditions
41 if the holder of a license or permit or applicant for a license or permit has
42 been found guilty of conduct that has endangered or is likely to endanger the
43 health, welfare, or safety of the public. Such conduct includes but is not
44 limited to:

45 ~~(a)~~ (1) Obtaining a license or permit by means of fraud, misrepresenta-
46 tion, or concealment of material facts;

47 ~~(b)~~ (2) Violating any of the grounds for discipline set forth in the
48 rules established by the board;

1 ~~(e)~~ (3) Being convicted of a crime that would have a direct and adverse
 2 bearing on the licensee's or permit holder's ability to practice or perform
 3 respiratory care competently;

4 ~~(d)~~ (4) The unauthorized practice of medicine;

5 ~~(e)~~ (5) Violating any provision of this chapter or any of the rules and
 6 regulations promulgated by the board under the authority of this chapter; or

7 ~~(f)~~ (6) Being found mentally incompetent by a court of competent juris-
 8 diction or being found mentally incompetent or unfit by the board to provide
 9 respiratory care.

10 ~~(2) A denial, refusal to renew, suspension, revocation, or imposition~~
 11 ~~of probationary conditions upon a license or permit may be ordered by the~~
 12 ~~board after a hearing in the manner provided by this chapter and the rules~~
 13 ~~adopted by the board.~~

14 SECTION 24. That Section 54-5006, Idaho Code, be, and the same is hereby
 15 amended to read as follows:

16 54-5006. ADMINISTRATOR OF THE DIVISION OF OCCUPATIONAL AND PROFES-
 17 SIONAL LICENSES. The administrator shall exercise such powers and duties as
 18 are reasonably necessary to enforce standards provided in this chapter, and
 19 he may, among other things:

20 ~~(1) Serve as secretary to the Idaho heating, ventilation and air condi-~~
 21 ~~tioning board.~~

22 ~~(2)~~ (1) Appoint state mechanical inspectors who shall be authorized to
 23 enter and inspect by and through a properly identified person, at reasonable
 24 hours, heating, ventilation and air conditioning systems.

25 ~~(3)~~ (2) Make HVAC inspections for another state or local jurisdiction
 26 upon request by an appropriate building official. Such inspections shall be
 27 made in accordance with the applicable HVAC codes of the requesting juris-
 28 diction. Fees charged for such inspection services shall be as provided in
 29 the rules promulgated by the board.

30 ~~(4)~~ (3) Notwithstanding the exception provided in section
 31 54-5002(1)(e), Idaho Code, ~~the administrator may~~ make inspections of
 32 modular buildings constructed in Idaho upon written request from the
 33 manufacturer. Such inspections shall be made in accordance with the codes
 34 adopted in this chapter. Inspection fees for such inspections shall be as
 35 provided in section 39-4303, Idaho Code. The administrator may issue an in-
 36 signia of approval if the buildings are in compliance with the requirements
 37 set forth in chapter 43, title 39, Idaho Code.

38 ~~(5) Summon witnesses to appear and testify before him on any matter~~
 39 ~~within the provisions of this chapter. No person shall be required to tes-~~
 40 ~~tify outside the county wherein he resides or where his principal place of~~
 41 ~~business is located. Such summons to testify shall be issued and served in~~
 42 ~~like manner as a subpoena to witness issued from the district court, or in~~
 43 ~~other manner consistent with procedure of the division of occupational and~~
 44 ~~professional licenses. In case any witness shall fail or refuse to appear~~
 45 ~~and testify upon being summoned as herein provided, the clerk of the district~~
 46 ~~court of the county shall, upon demand by said administrator or his desig-~~
 47 ~~nated agent, issue a subpoena reciting the demand therefor and summoning the~~
 48 ~~witness to appear and testify at a time and place fixed. Violation of such~~

1 subpoena or disobedience thereto shall be deemed and punished as a violation
2 of any other subpoena issued from the district court.

3 ~~(6) Administer oaths and take affirmations of witnesses appearing be-~~
4 ~~fore him or a duly appointed hearing officer; and have the power to appoint~~
5 ~~competent persons to issue subpoenas, administer oaths and take testimony.~~

6 ~~(7)~~ (4) Impose civil penalties as provided in this chapter and rules of
7 the board.

8 SECTION 25. That Section 54-5315, Idaho Code, be, and the same is hereby
9 amended to read as follows:

10 54-5315. REVOCATION OR SUSPENSION OF LICENSE ~~— PROCEDURES FOR DISCI-~~
11 ~~PLINARY PROCEEDINGS.~~ ~~(1)~~ The board shall have the power to refuse to issue a
12 license or revoke, suspend, refuse to renew, or otherwise sanction any li-
13 cense issued pursuant to the provisions of this chapter for any of the fol-
14 lowing:

15 ~~(a)~~ (1) Procuring a license or registration by knowingly making a false
16 statement, submitting false information, refusing to provide complete
17 information in response to a question in an application for a license or
18 through any form of fraud or misrepresentation;

19 ~~(b)~~ (2) Being convicted of a felony;

20 ~~(c)~~ (3) Misrepresentation or fraudulent representation in the perfor-
21 mance of any duty, conduct or activity regulated under this chapter;

22 ~~(d)~~ (4) Violating the provisions of this chapter or any rules of the
23 board or any code of conduct or ethical standards adopted by the board;

24 ~~(e)~~ (5) Being incompetent; or

25 ~~(f)~~ (6) Failing to provide appropriate and personal supervision, if
26 acting as the designated supervisor, to any person gaining experience under
27 the provisions of this chapter.

28 ~~(2) The board shall have the power to administer oaths, take deposi-~~
29 ~~tions of witnesses within or without the state in the manner provided by law~~
30 ~~in civil cases, and, within the state of Idaho, to require the attendance of~~
31 ~~such witnesses and the production of such books, records and papers as it may~~
32 ~~desire, relevant to any hearing before it of any matter it has authority to~~
33 ~~investigate, and for that purpose the board may issue a subpoena for any wit-~~
34 ~~ness or a subpoena duces tecum to compel the production of books, records or~~
35 ~~papers directed to the sheriff of any county of the state of Idaho where such~~
36 ~~witness resides or may be found, which subpoena shall be served and returned~~
37 ~~in the same manner as a subpoena in a criminal case.~~

38 ~~(3) The procedures for disciplinary proceedings shall be in compliance~~
39 ~~with the Idaho administrative procedure act, the Idaho rules of administra-~~
40 ~~tive procedure, and the division of occupational and professional licenses.~~

41 SECTION 26. That Section 54-5409, Idaho Code, be, and the same is hereby
42 amended to read as follows:

43 54-5409. CERTAIN ACTS PROHIBITED. ~~(1)~~ The following acts shall be un-
44 lawful and punishable as a misdemeanor:

45 ~~(a)~~ (1) The violation of any of the provisions of this chapter;

1 ~~(b)~~ (2) Permitting any person in one's employ, supervision or control
2 to practice as a driving instructor unless that person has complied with the
3 provisions of this chapter;

4 ~~(e)~~ (3) Practicing or offering to practice any of the occupations de-
5 fined in this chapter, unless licensed as herein provided; and

6 ~~(d)~~ (4) Maintaining or operating a driving business unless such busi-
7 ness is licensed as herein provided.

8 ~~(2) The board may seek injunction against any person who practices as~~
9 ~~a driving instructor or who operates a driving business in violation of the~~
10 ~~provisions of this chapter. In the event a permanent injunction is entered~~
11 ~~against such person, or plea or verdict of guilty is entered in any criminal~~
12 ~~matter, the board may impose a civil penalty in the amount of all costs and~~
13 ~~fees incurred by the board in prosecuting the matter.~~

14 SECTION 27. That Section 54-5807, Idaho Code, be, and the same is hereby
15 amended to read as follows:

16 54-5807. POWERS OF THE BOARD. ~~(1)~~ The board shall have the power to:

17 ~~(a)~~ (1) Receive applications for licensure, certification, and regis-
18 tration, determine the qualifications of applicants, provide licenses, cer-
19 tificates, and registrations to applicants qualified under the provisions
20 of this chapter, and reinstate and deny licenses, certificates, and regis-
21 trations;

22 ~~(b)~~ (2) Establish fees by rule and collect fees as prescribed by this
23 chapter;

24 ~~(e)~~ (3) Maintain records necessary to carry out its duties under this
25 chapter;

26 ~~(d)~~ (4) Judge the qualifications and fitness of applicants for li-
27 censes, certificates and registrations;

28 ~~(e)~~ (5) Examine for, deny, approve, issue, revoke and suspend licenses,
29 certificates and registrations, or sanction or impose education, training
30 or supervision on any licensee, certificant or registrant pursuant to this
31 chapter and conduct investigations in connection with such actions;

32 ~~(f) Conduct hearings and proceedings in accordance with the provisions~~
33 ~~of chapter 52, title 67, Idaho Code;~~

34 ~~(g)~~ (6) Establish requirements for reinstatement and renewal of li-
35 censes and registrations;

36 ~~(h)~~ (7) Adopt and revise such rules as may be necessary to carry into
37 effect the provisions of this chapter in compliance with chapter 52, title
38 67, Idaho Code;

39 ~~(i)~~ (8) Take such action as may be necessary to enforce the provisions
40 of this chapter and to regulate the practice of occupations licensed, cer-
41 tificated and registered under this chapter;

42 ~~(j)~~ (9) Approve relevant cosmetology education for barber and bar-
43 ber-styling licenses and approve relevant barber and barber-styling ed-
44 ucation for cosmetology licenses; provided that the total instructional
45 hours required for a licensed cosmetologist to qualify for a barber or
46 barber-styling license shall not exceed one hundred (100) hours, unless re-
47 quired by a national accrediting body; and

48 ~~(k) Authorize, by written agreement, the division of occupational and~~
49 ~~professional licenses as its agent to act in its interest and, at the board's~~

1 discretion, contract with the division of occupational and professional li-
 2 censes for those services deemed necessary for the proper administration of
 3 this chapter.

4 ~~(2) In any proceeding before the board authorized by this chapter, the~~
 5 ~~board or its designee may administer oaths or affirmations to witnesses ap-~~
 6 ~~pearing before it, may subpoena witnesses and compel their attendance and~~
 7 ~~also may require the production of books, papers, documents, electronically~~
 8 ~~stored information and items at such proceedings. If any person shall refuse~~
 9 ~~to obey any subpoena so issued or shall refuse to testify or comply with a re-~~
 10 ~~quest for production, the board may present its petition to a district judge~~
 11 ~~to cause an order to be issued requiring such witness to appear before the~~
 12 ~~board to testify and to produce such books, papers and other documents and~~
 13 ~~items as directed in the subpoena. Any person failing or refusing to obey~~
 14 ~~such order shall be punished for contempt of court.~~

15 ~~(3) In a final order, the board may impose a civil penalty not to exceed~~
 16 ~~one thousand dollars (\$1,000) for each violation by a licensee, certificant~~
 17 ~~or registrant of this chapter or of rules adopted by the board.~~

18 SECTION 28. That Section 55-1811, Idaho Code, be, and the same is hereby
 19 amended to read as follows:

20 55-1811. GENERAL POWERS AND DUTIES. (1) The commission shall have the
 21 authority to promulgate, to amend and to repeal reasonable rules for the ad-
 22 ministration and enforcement of this chapter. Such rules may include provi-
 23 sions for advertising standards to assure full and fair disclosure; provi-
 24 sions for bond, escrow or trust agreements or other means to assure that all
 25 improvements referred to in the application for registration and advertis-
 26 ing will be completed and that purchasers will receive the interest in land
 27 for which they contracted; provisions for operating procedures; and such
 28 other rules as are necessary or proper to accomplish the purposes of this
 29 chapter.

30 (2) The commission may revoke a registration ordered under the provi-
 31 sions of this chapter, issue a cease and desist order and assess costs and at-
 32 torney's fees for the cost of any investigation and administrative or other
 33 proceedings against any person who is found to have violated any section of
 34 this chapter, the commission's administrative rules or any order of the com-
 35 mission. If any amounts assessed against a subdivider by final order of the
 36 commission become otherwise uncollectible or payment is in default, and only
 37 if all of the defendant's rights to appeal have passed, the commission may
 38 then proceed to district court and seek to enforce collection through judg-
 39 ment and execution, including an action against any bond filed or escrow or
 40 trust funds deposited pursuant to section 55-1806, Idaho Code.

41 ~~(3) Whenever it appears that a person has engaged or is about to engage~~
 42 ~~in acts or practices that constitute or will constitute a violation of the~~
 43 ~~provisions of this chapter or of a rule or order hereunder, the commission,~~
 44 ~~with or without prior administrative proceedings, may bring an action in any~~
 45 ~~district court to enjoin the acts or practices and to enforce compliance with~~
 46 ~~this chapter or any rule or order hereunder. Upon a proper showing, a perma-~~
 47 ~~nent or temporary injunction or restraining order may be granted.~~

48 ~~(4)~~ (3) The commission may intervene in a suit involving subdivided
 49 lands. In any suit by or against a subdivider involving subdivided lands,

1 the subdivider promptly shall furnish the commission notice of the suit and
2 copies of all pleadings.

3 ~~(5)~~ (4) The commission may:

4 (a) Accept registrations filed in other states or with the federal gov-
5 ernment;

6 (b) Contract with the association of real estate license law officials
7 to use its web-based file management system to accept registrations and
8 related filings and to reduce the registration fees for applicants who
9 use the web-based system to file registration documents;

10 (c) Contract with similar agencies in this state or other jurisdictions
11 to perform investigative functions.

12 ~~(6)~~ (5) The commission shall cooperate with similar agencies in other
13 jurisdictions to establish uniform filing procedures and forms, uniform
14 public offering statements, advertising standards, rules and common admin-
15 istrative practices.

16 SECTION 29. That Section 55-1813, Idaho Code, be, and the same is hereby
17 amended to read as follows:

18 55-1813. INVESTIGATIONS AND PROCEEDINGS. ~~(1)~~ The commission may in-
19 vestigate any subdivision offered for disposition in this state and the ac-
20 tions of any person who makes any offer or disposition of subdivided lands
21 requiring registration under this chapter. In the conduct of the investiga-
22 tion, the commission may:

23 ~~(a)~~ (1) Rely upon any relevant information concerning a subdivision ob-
24 tained from the federal housing administration, the United States depart-
25 ment of veterans affairs or any other federal agency or any state agency hav-
26 ing comparable duties in relation to subdivisions;

27 ~~(b)~~ (2) Require the applicant to submit reports prepared by competent
28 engineers as to any hazard to which any subdivision offered for disposition
29 is subject or any factor that affects the utility of interests within the
30 subdivision and require evidence of compliance in removing or minimizing all
31 hazards reflected in engineering reports;

32 ~~(c)~~ (3) Require an on-site inspection of the subdivision by a person
33 or persons designated by it. All expenses incurred in connection with an
34 on-site inspection shall be defrayed by the applicant, and the commission
35 shall require a deposit sufficient to defray such expenses in advance;

36 ~~(d)~~ (4) Make public or private investigations within or outside this
37 state to determine whether any person has violated or is about to violate the
38 provisions of this chapter or any rule or order hereunder, or to aid in the
39 enforcement of this chapter or in prescribing rules and forms hereunder; and

40 ~~(e)~~ (5) Require or permit any person to file a statement in writing, un-
41 der oath or otherwise as the commission determines, as to all the facts and
42 circumstances concerning the matter to be investigated.

43 ~~(2) For the purpose of any investigation or proceeding under this chap-~~
44 ~~ter, the commission or any person designated by it may administer oaths or~~
45 ~~affirmations, and upon its own motion or upon the request of any party the~~
46 ~~commission or any person designated by it shall have the power to adminis-~~
47 ~~ter oaths, take depositions of witnesses in and out of the state of Idaho in~~
48 ~~the manner of civil cases, require the attendance of such witnesses and the~~
49 ~~production of such books, records and papers as it may desire at any hearing~~

~~before it or deposition authorized by it pertaining in any manner to any matters of which it has authority to investigate, and for that purpose the commission may issue a subpoena for any witness or a subpoena duces tecum to compel the production of any books, records or papers that shall be served and returned in the same manner as a subpoena in a civil case is returned. The fees and mileage of witnesses shall be the same as that allowed in the district courts in civil cases.~~

~~(3) The commission may permit a person registered with the commission whose conduct or actions may be under investigation to waive formal proceedings and enter into a consent proceeding whereby orders, rules or letters of censure or warning, whether formal or informal, may be entered against said person.~~

~~(4) Except as otherwise provided in this chapter, all proceedings under this chapter shall be in accordance with chapter 52, title 67, Idaho Code.~~

SECTION 30. That Chapter 26, Title 67, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 67-2616, Idaho Code, and to read as follows:

67-2616. DIVISION PROCEEDINGS AGAINST A LICENSE, PERMIT, CERTIFICATE, OR REGISTRATION. (1) Every board, commission, program, and committee administered by the division shall have the power to hold and conduct hearings pursuant to chapter 52, title 67, Idaho Code, administer oaths, issue subpoenas, take depositions of witnesses, and require the attendance of such witnesses and the production of records. Fees and mileage of the witnesses shall be the same as that allowed in the district courts in criminal cases. In the event of disobedience to or neglect of any subpoena or the refusal of any witness to testify, it shall be the duty of the district court to compel obedience.

(2) The division may maintain an action on behalf of any board, commission, program, or committee administered by the division to enjoin any person from persisting in committing any act that constitutes a violation of the applicable practice act. The division shall bring such action in district court by filing a verified complaint. Upon a finding that the violation is likely to continue, the court may issue a temporary writ enjoining the respondent from the act or acts constituting the violation, and the matter shall proceed in the same manner as other injunction proceedings.

(3) Upon a finding that a respondent has violated any of the provisions of any applicable practice act, regulation, or professional standard generally accepted in the community relevant to the respondent's profession or occupation, the board, commission, program, or committee shall have power to enter or seek an order of formal discipline, including any or all of the following:

- (a) Refusing to renew or reinstate the respondent's license, permit, certificate, or registration;
- (b) Revoking the respondent's license, permit, certificate, or registration;
- (c) Suspending for a definite period of time the respondent's license, permit, certificate, or registration;
- (d) Otherwise restricting for a definite period of time the respondent's license, permit, certificate, or registration;

1 (e) Requiring rehabilitation, education, or training;

2 (f) Issuing a public reprimand;

3 (g) Requiring restitution for losses suffered or reimbursement for any
4 damages incurred as a result of a violation of the applicable practice
5 act;

6 (h) Imposing an administrative fine not to exceed one thousand dollars
7 (\$1,000) for each count or offense, unless otherwise provided in the
8 board, commission, program, or committee statutes or rules; and

9 (i) Assessing costs and attorney's fees against the respondent for any
10 investigation or administrative proceeding.

11 (4) Any formal disciplinary action taken pursuant to this section shall
12 be conducted in accordance with the contested case provisions of chapter 52,
13 title 67, Idaho Code.

14 (5) Every board, commission, program, and committee may accept a vol-
15 untary surrendering of a license or seek informal disposition of a disci-
16 plinary matter by negotiation, stipulation, agreed settlement, or consent
17 order imposing any penalties as set forth in subsection (3) of this section.
18 Pursuant to the terms of the informal disposition, the matter may remain con-
19 fidential and exempt from disclosure under the Idaho public records act, but
20 a status report shall be provided to the original complainant upon request.

21 (6) In addition to any of the grounds for professional discipline pro-
22 vided in the applicable practice act, each board, commission, program, and
23 committee administered by the division shall also have the power to enter or
24 seek an order for:

25 (a) Committing or aiding and abetting unlicensed practice in this
26 state;

27 (b) The failure of an applicant or licensee to cooperate with an inves-
28 tigation; or

29 (c) The failure of an applicant or licensee to continue to meet any re-
30 quirements for initial licensure.

31 (7) Each board, commission, program, and committee shall maintain ju-
32 risdiction over every license, permit, certificate, and registration, in-
33 cluding those that lapse due to nonrenewal. The existence or status of the
34 license, permit, certificate, or registration shall not affect the juris-
35 diction of any such board, commission, program, or committee over violations
36 of the applicable practice act, regulations, or standards.

37 (8) Any person may file a complaint with the relevant board, commis-
38 sion, program, or committee against anyone who has been issued a license,
39 permit, certificate, or registration by the relevant board, commission,
40 program, or committee charging that person with violation of the provisions
41 of any applicable practice act, regulation, or professional standard gen-
42 erally accepted in the community relevant to the respondent's profession
43 or occupation. The complaint shall specify charges in sufficient detail so
44 as to disclose to the respondent the alleged acts of misconduct for which
45 the respondent is charged. Upon receiving a complaint, the board, commis-
46 sion, program, or committee shall notify the respondent holding the license,
47 permit, certificate, or registration of the complaint and shall request a
48 response from the respondent. If the board, commission, program, or commit-
49 tee determines that it lacks jurisdiction over the matters in a complaint, it
50 shall communicate such to the original complainant. Each board, commission,

1 program, and committee shall keep an information file about each complaint
2 filed with them, which shall be exempt from disclosure pursuant to sections
3 67-2615 and 74-106, Idaho Code. The information in each complaint file shall
4 contain complete, current, and accurate information, including but not lim-
5 ited to:

6 (a) All persons contacted in relation to the complaint;

7 (b) A summary of the findings made at each step of the complaint
8 process;

9 (c) An explanation of the legal basis and reason for a complaint that is
10 dismissed; and

11 (d) Any other relevant information.

12 (9) Each board, commission, program, and committee may refer a com-
13 plaint for a violation of any section of this or any other applicable chapter
14 before any court of competent jurisdiction. It shall be the duty of the
15 prosecuting attorney of each county in the state to prosecute all violations
16 of the provisions of this chapter in their respective counties in which such
17 violations occur.

18 SECTION 31. That Section [39-4125](#), Idaho Code, be, and the same is hereby
19 repealed.

20 SECTION 32. That Section [54-223](#), Idaho Code, be, and the same is hereby
21 repealed.

22 SECTION 33. That Section [54-225](#), Idaho Code, be, and the same is hereby
23 repealed.

24 SECTION 34. That Section [54-610](#), Idaho Code, be, and the same is hereby
25 repealed.

26 SECTION 35. That Section [54-713](#), Idaho Code, be, and the same is hereby
27 repealed.

28 SECTION 36. That Section [54-925](#), Idaho Code, be, and the same is hereby
29 repealed.

30 SECTION 37. That Section [54-926](#), Idaho Code, be, and the same is hereby
31 repealed.

32 SECTION 38. That Section [54-933](#), Idaho Code, be, and the same is hereby
33 repealed.

34 SECTION 39. That Section [54-1009](#), Idaho Code, be, and the same is hereby
35 repealed.

36 SECTION 40. That Section [54-1127](#), Idaho Code, be, and the same is hereby
37 repealed.

38 SECTION 41. That Section [54-1220](#), Idaho Code, be, and the same is hereby
39 repealed.

40 SECTION 42. That Section [54-1416](#), Idaho Code, be, and the same is hereby
41 repealed.

1 SECTION 43. That Section [54-1512](#), Idaho Code, be, and the same is hereby
2 repealed.

3 SECTION 44. That Section [54-1513](#), Idaho Code, be, and the same is hereby
4 repealed.

5 SECTION 45. That Section [54-1524](#), Idaho Code, be, and the same is hereby
6 repealed.

7 SECTION 46. That Section [54-1815](#), Idaho Code, be, and the same is hereby
8 repealed.

9 SECTION 47. That Section [54-1915](#), Idaho Code, be, and the same is hereby
10 repealed.

11 SECTION 48. That Section [54-1918](#), Idaho Code, be, and the same is hereby
12 repealed.

13 SECTION 49. That Section [54-1920A](#), Idaho Code, be, and the same is
14 hereby repealed.

15 SECTION 50. That Section [54-2066](#), Idaho Code, be, and the same is hereby
16 repealed.

17 SECTION 51. That Section [54-2115A](#), Idaho Code, be, and the same is
18 hereby repealed.

19 SECTION 52. That Section [54-2116](#), Idaho Code, be, and the same is hereby
20 repealed.

21 SECTION 53. That Section [54-2120](#), Idaho Code, be, and the same is hereby
22 repealed.

23 SECTION 54. That Section [54-2220](#), Idaho Code, be, and the same is hereby
24 repealed.

25 SECTION 55. That Section [54-2221](#), Idaho Code, be, and the same is hereby
26 repealed.

27 SECTION 56. That Section [54-2311](#), Idaho Code, be, and the same is hereby
28 repealed.

29 SECTION 57. That Section [54-2414](#), Idaho Code, be, and the same is hereby
30 repealed.

31 SECTION 58. That Section [54-2608](#), Idaho Code, be, and the same is hereby
32 repealed.

33 SECTION 59. That Section [54-2920](#), Idaho Code, be, and the same is hereby
34 repealed.

35 SECTION 60. That Section [54-2924](#), Idaho Code, be, and the same is hereby
36 repealed.

1 SECTION 61. That Section [54-2925](#), Idaho Code, be, and the same is hereby
2 repealed.

3 SECTION 62. That Section [54-3113](#), Idaho Code, be, and the same is hereby
4 repealed.

5 SECTION 63. That Section [54-3114](#), Idaho Code, be, and the same is hereby
6 repealed.

7 SECTION 64. That Section [54-3216](#), Idaho Code, be, and the same is hereby
8 repealed.

9 SECTION 65. That Section [54-3321](#), Idaho Code, be, and the same is hereby
10 repealed.

11 SECTION 66. That Section [54-3322](#), Idaho Code, be, and the same is hereby
12 repealed.

13 SECTION 67. That Section [54-3323](#), Idaho Code, be, and the same is hereby
14 repealed.

15 SECTION 68. That Section [54-3409](#), Idaho Code, be, and the same is hereby
16 repealed.

17 SECTION 69. That Section [54-3716](#), Idaho Code, be, and the same is hereby
18 repealed.

19 SECTION 70. That Section [54-3720](#), Idaho Code, be, and the same is hereby
20 repealed.

21 SECTION 71. That Section [54-4108](#), Idaho Code, be, and the same is hereby
22 repealed.

23 SECTION 72. That Section [54-4117](#), Idaho Code, be, and the same is hereby
24 repealed.

25 SECTION 73. That Section [54-4118](#), Idaho Code, be, and the same is hereby
26 repealed.

27 SECTION 74. That Section [54-4514](#), Idaho Code, be, and the same is hereby
28 repealed.

29 SECTION 75. That Section [54-5013A](#), Idaho Code, be, and the same is
30 hereby repealed.

31 SECTION 76. That Section [54-5218](#), Idaho Code, be, and the same is hereby
32 repealed.

33 SECTION 77. That Section [54-5219](#), Idaho Code, be, and the same is hereby
34 repealed.

35 SECTION 78. That Section [54-5317](#), Idaho Code, be, and the same is hereby
36 repealed.

1 SECTION 79. That Section 36-408, Idaho Code, be, and the same is hereby
2 amended to read as follows:

3 36-408. COMMISSION'S AUTHORITY -- TAGS -- PERMITS -- NONRESIDENTS
4 LIMITED -- OUTFITTERS SET-ASIDE. (1) Tags and Permits -- Method of Use. The
5 commission is hereby authorized to prescribe the number and kind of wildlife
6 that may be taken under authority of the several types of tags and permits
7 provided for in this title and the manner in which said tags and permits shall
8 be used and validated. All Idaho wolf tags will be valid for hunting, trap-
9 ping, and snaring in any unit when seasons are open at the time of take. There
10 shall be no limit to the number of wolf tags that an individual can purchase.
11 All appropriate fish and game education requirements must be met.

12 (2) Limit -- Licenses, Tags or Permits -- Controlled Hunts. The commis-
13 sion is hereby authorized to establish a limit annually as to the number of
14 each kind and class of licenses, tags, or permits to be sold or issued and is
15 further authorized to limit the number or prohibit entirely the participa-
16 tion by nonresidents in controlled hunts.

17 (3) Outfitted Hunter Tags Set-Aside. When the commission establishes a
18 limit as to the number of nonresident deer tags and nonresident elk tags, it
19 shall set aside, when setting big game seasons, in a statewide pool, a maxi-
20 mum of twenty-five percent (25%) of the nonresident deer tag and nonresident
21 elk tag limit. These tags may be allocated to the outfitted hunters in capped
22 hunts and controlled hunts and set aside for outfitted hunter use in general
23 hunts.

24 (a) Such outfitted allocated set-aside tags shall be separate from the
25 tag numbers set for residents and nonresidents in each capped or con-
26 trolled hunt, unit, or game management area. The set-aside tags shall
27 be sold pursuant to commission rule, only to persons that have entered
28 into a signed agreement for that year to utilize the services of an out-
29 fitter licensed pursuant to chapter 21, title 36, Idaho Code.

30 (b) In order for a person to purchase any set-aside nonresident deer
31 tag or nonresident elk tag, that person's outfitter must submit an ap-
32 plication with the proper fees as required by the director. If any non-
33 resident deer tags or nonresident elk tags set aside for use in general
34 hunts pursuant to this subsection are unsold by July 15 of the year in
35 which they were set aside, they may be sold by the department to the gen-
36 eral public pursuant to commission rule. If any nonresident deer tags
37 or nonresident elk tags set aside as general capped allocated tags pur-
38 suant to this subsection are unsold by July 31 of the year in which they
39 were set aside, they may be sold by the department to the general public
40 pursuant to commission rule.

41 (c) The commission may promulgate all necessary rules to implement the
42 provisions of this subsection.

43 (4) Deer and Elk Tag Allocation. When setting big game seasons, if the
44 commission limits the number of deer or elk tags available for use in any game
45 management area, unit, or zone, the commission may allocate by rule, where
46 there are outfitted operations, a number of deer and elk tags from the out-
47 fitted hunter set-aside pool of tags for use by hunters that have entered
48 into a signed agreement for that year to utilize the services of an outfit-
49 ter licensed pursuant to chapter 21, title 36, Idaho Code.

(a) In addition to rules promulgated by the commission regarding allocation, or pursuant to this section, in capped hunts the commission may allocate the number of outfitted hunter elk and deer tags based on the highest number within each of the last two (2) years of all elk or deer tags using the services of an outfitter in each capped hunt. Any additional tags above the original outfitted hunter tag quota may come from the nonresident outfitted hunter set-aside pool or the nonresident quota in the capped hunt, not to exceed fifty percent (50%) of the nonresident quota for each capped hunt. In capped hunts, when tag numbers change for all users, they will apply proportionally to all user groups.

(b) In controlled hunts, the commission may allocate the number of outfitted hunter elk or deer tags based on a number compiled from each outfitter's highest year within the last two (2) years of all elk or deer tags using the services of an outfitter for each controlled hunt. Any additional tags above the original outfitted hunter tag quota may come from the nonresident outfitted hunter set-aside pool or the nonresident quota in the controlled hunt, not to exceed fifty percent (50%) of the nonresident quota for each controlled hunt.

(c) Outfitted hunter tag use history will be provided through records from the sale of outfitted hunter tags compiled by the Idaho department of fish and game and verified use other than allocated tags recorded with the department by December 20 by outfitters. The department shall distribute the allocated outfitted tags through its point-of-sale machines.

(d) Beginning December 1, 2020, all outfitted deer and elk tag use shall be verified in order to qualify for allocated outfitted hunter tag use history. Verification consists of the purchase of allocated tags from the Idaho department of fish and game or the use of an outfitter-provided agreement, including the tag number that is recorded with the department.

(e) All big game tags used in allocated outfitted hunts must be recorded by outfitters with the department by December 20 each year. An administrative fee of five dollars (\$5.00) shall be assessed for each allocated outfitted big game tag sold or exchanged at a point-of-sale machine. An administrative fee of twenty dollars (\$20.00) shall be assessed for each big game tag submitted for verification as being outfitted.

(f) The allocated tags shall be designated by the Idaho outfitters and guides licensing board to those authorized outfitting operations licensed for elk and deer hunting for the use by the outfitted hunter, pursuant to section 36-2107(h), Idaho Code.

(g) Those tags not qualified for allocated tag use history include emergency depredation, landowner appreciation program hunts, or meat packing without an outfitted allocated deer or elk tag.

(h) The commission may promulgate all necessary rules to implement the provisions of this subsection.

(5) Special Game Tags. The commission is hereby authorized to issue two (2) special bighorn sheep tags per year.

(a) Auction bighorn sheep tag. One (1) special bighorn sheep tag shall be auctioned off by an incorporated nonprofit organization dedicated

1 to wildlife conservation selected by the commission. The tag shall be
2 issued by the department of fish and game to the highest eligible bid-
3 der. No more than five percent (5%) of all proceeds for the tag may be
4 retained by the organization. The tag to be issued pursuant to this
5 subsection shall be taken from the nonresident bighorn sheep tag quota.
6 The net proceeds shall be forwarded to the director for deposit in the
7 fish and game expendable trust account and shall be used for bighorn
8 sheep research and management purposes. Moneys raised pursuant to this
9 subsection may not be used to transplant additional bighorn sheep into
10 that portion of southwest Idaho south of the Snake river and west of U.S.
11 highway no. 93, nor for litigation or environmental impact statements
12 involving bighorn sheep. No transplants of bighorn sheep accomplished
13 with moneys raised pursuant to this subsection shall occur in any area
14 until hearings are conducted in the area. Provided however, that none
15 of the proceeds generated from the auction of bighorn sheep tags pur-
16 suant to this paragraph be used to purchase or acquire private property
17 or federally managed grazing permits, nor shall any proceeds generated
18 be used for matching funds for the purchase of private property or the
19 retirement or the acquisition of federally managed grazing permits.

20 (b) Lottery bighorn sheep tag. The commission is also authorized to is-
21 sue one (1) special bighorn sheep tag, which will be disposed of by lot-
22 tery. The lottery permit can be marketed by the department of fish and
23 game or a nonprofit organization dedicated to wildlife conservation se-
24 lected by the commission. The tag will be issued by the department of
25 fish and game to an eligible person drawn from the lottery provided in
26 this subsection. No more than twenty-five percent (25%) of gross rev-
27 enue can be retained for administrative costs by the organization. All
28 net proceeds for the tag disposed of by lottery pursuant to this sub-
29 section shall be remitted to the department and deposited in the fish
30 and game expendable trust account. Moneys in the account from the lot-
31 tery bighorn sheep tag shall be utilized by the department in solving
32 problems between bighorn sheep and domestic sheep, solving problems be-
33 tween wildlife and domestic animals or improving relationships between
34 sportsmen and private landowners.

35 (6) Issuance of Free Permit or Tag to Minor Children with Life-Threat-
36 ening Medical Conditions. Notwithstanding any other provision of law, the
37 commission may issue free big game permits or tags to minor children who have
38 life-threatening medical conditions that have been certified eligible by
39 a qualified organization. The commission may prescribe by rule the manner
40 and conditions of issuing and using the permits or tags authorized under this
41 subsection. For purposes of this subsection, a "qualified organization"
42 means a nonprofit organization that is qualified under section 501(c)(3) of
43 the Internal Revenue Code and that affords opportunities and experiences to
44 minor children with life-threatening medical conditions.

45 (7) Issuance of Free Permit or Tag to Military Veterans with Disabil-
46 ities. The commission may prescribe by rule the manner and conditions of
47 using the permits or tags authorized under this subsection. Notwithstand-
48 ing any other provision of law, the commission shall issue five (5) free big
49 game permits or tags to disabled military veterans whose disability has been
50 certified eligible by the Idaho division of veterans services. All veterans

1 applying must be sponsored by a "qualified organization," which for purposes
2 of this subsection means a governmental agency that assists veterans or a
3 nonprofit organization that is qualified under section 501(c)(3), 501(c)(4)
4 or 501(c)(19) of the Internal Revenue Code and that affords opportunities,
5 experiences and assistance to disabled veterans. The Idaho division of vet-
6 erans services shall screen all applicants to ensure only the most deserving
7 disabled veterans shall be issued these permits or tags. A list of screened
8 applicants shall be provided to the commission in priority order for is-
9 suance. The commission shall issue one (1) permit or tag each to the top two
10 (2) candidates for a sponsored hunt as designated by the Idaho division of
11 veterans services and the three (3) remaining permits or tags to candidates
12 sponsored by a qualified organization as described in this subsection.

13 (8) Special Wolf Tags. The commission is hereby authorized to issue up
14 to ten (10) special auction or lottery tags for hunting wolves. Special wolf
15 tags will be auctioned off or made available through lottery by incorporated
16 nonprofit organizations dedicated to wildlife conservation and selected by
17 the director. No more than five percent (5%) of all proceeds for each tag
18 may be retained by the nonprofit organization for administrative costs in-
19 volved. Each wolf tag shall be issued by the department of fish and game and
20 awarded to the highest eligible bidder or winner of a lottery. Each tag will
21 be good for the harvest of one (1) wolf pursuant to commission rule. The pro-
22 ceeds from each tag will be sent to the director to be placed in the depart-
23 ment general license fund.

24 (9) Special Big Game Auction Tags -- Governor's Wildlife Partnership
25 Tags. The commission is hereby authorized to issue special big game auc-
26 tion tags hereafter named and referred to as "Governor's wildlife partner-
27 ship tags" for hunting designated species on dates and in areas designated by
28 the commission. To enhance and sustain the value of Idaho's wildlife, up to
29 three (3) tags per species per year may be issued for deer, elk and pronghorn
30 antelope, one (1) tag per year may be issued for moose, and one (1) tag per
31 species per year may be issued for mountain goat and bighorn sheep. Each tag
32 will be signed by the governor of Idaho prior to auction to the public and be
33 available to either residents or nonresidents of Idaho. Governor's wildlife
34 partnership tags issued for deer, elk, pronghorn antelope and moose pursuant
35 to this subsection shall be taken from the nonresident controlled hunt pro-
36 grams for these species adopted by the fish and game commission. Governor's
37 wildlife partnership tags issued for mountain goat and bighorn sheep shall
38 be taken from the nonresident mountain goat and bighorn sheep quota. Gover-
39 nor's wildlife partnership tags shall be auctioned off by incorporated non-
40 profit organizations dedicated to wildlife conservation and selected by the
41 director. No more than five percent (5%) of all proceeds from each tag sale
42 may be retained by the nonprofit organization for administrative costs in-
43 volved, including in the event a tag is redonated and reauctioned. Each tag
44 shall be issued by the department of fish and game and awarded to the high-
45 est eligible bidder. Each tag shall be good for the harvest of one (1) big
46 game animal pursuant to commission rule consistent with the provisions of
47 this subsection. The proceeds from each tag shall be sent to the director to
48 be allocated up to thirty percent (30%) for sportsmen access programs, such
49 as access yes, and the balance for wildlife habitat projects, wildlife man-
50 agement projects to increase the quantity and quality of big game herds, and

1 other research and management activities approved by the commission. Pro-
 2 vided however, that none of the proceeds generated from the auctions pur-
 3 suant to the provisions of this subsection shall be used to purchase or ac-
 4 quire private property or federally managed grazing permits, nor shall any
 5 proceeds generated be used for matching funds for the purchase of private
 6 property or the retirement or the acquisition of federally managed grazing
 7 permits. Moneys raised pursuant to this subsection may not be used to trans-
 8 plant additional bighorn sheep into that portion of southwest Idaho south of
 9 the Snake river and west of U.S. highway no. 93, nor for litigation or envi-
 10 ronmental impact statements involving bighorn sheep.

11 SECTION 80. That Section 36-2116, Idaho Code, be, and the same is hereby
 12 amended to read as follows:

13 36-2116. COMPLAINT FOR VIOLATION -- PROSECUTION BY COUNTY ATTOR-
 14 NEY. (a) The board or its designated agent may prefer a complaint before any
 15 court of competent jurisdiction in the county where the offense occurred,
 16 for a violation of: (i) the provisions of subsections (1), (2), (7), (8),
 17 or (9) of section 36-2113, Idaho Code; or (ii) any regulation promulgated
 18 pursuant to ~~subsection (d) of~~ section 36-2107(c), Idaho Code.

19 (b) Any person convicted of any violation enumerated in subsection
 20 (a) of this section shall be guilty of a misdemeanor and, upon conviction
 21 thereof, shall be punished as provided in section 36-2117, Idaho Code. Fifty
 22 percent (50%) of all fines and forfeitures collected shall be paid to the
 23 outfitters and guides licensing board and such moneys so received by the
 24 board shall be deposited with the state treasurer and the state treasurer
 25 shall credit the same to the occupational licenses fund and fifty percent
 26 (50%) of all fines and forfeitures collected shall be distributed in accor-
 27 dance with section 19-4705, Idaho Code.

28 SECTION 81. That Section 54-314, Idaho Code, be, and the same is hereby
 29 amended to read as follows:

30 54-314. DISCIPLINE -- INJUNCTION. (1) The board shall have the author-
 31 ity to sanction any license issued pursuant to the provisions of this chapter
 32 for any of the following:

33 (a) Fraud or deception in applying for, procuring or renewing a license
 34 under this chapter;

35 (b) Fraud or deceit in the practice of architecture or in procuring any
 36 contract in the practice of architecture;

37 (c) Incompetence or gross negligence or recklessness in the practice of
 38 architecture;

39 (d) A conviction, finding of guilt, receipt of a withheld judgment or
 40 suspended sentence in this or any other state, territory, country or ju-
 41 risdiction for a felony or a misdemeanor, which misdemeanor involved
 42 a violation of the provisions of this chapter, a willful violation of
 43 state or local building codes, or a violation of other laws relating to
 44 the public health and safety and was committed in the course of practic-
 45 ing architecture;

46 (e) Affixing his signature to, or impressing his seal on, any plans,
 47 drawings, specifications or other instruments of service that have not

1 been prepared by him or under his responsible control or permitting his
 2 name to be used for the purpose of assisting any person who is not a li-
 3 censed architect to evade the provisions of this chapter;

4 (f) Receiving rebates, commissions, grants of money or other favors in
 5 connection with the work without the knowledge of the party for whom he
 6 is working or having a pecuniary interest in the performance of the con-
 7 tract for the work designed, planned or supervised by him without the
 8 knowledge and consent of the owner;

9 (g) Unethical or unprofessional conduct as defined by the rules of the
 10 board or the code of ethics established by the rules of the board;

11 (h) Practicing architecture or representing oneself as a licensed ar-
 12 chitect when unlicensed in violation of licensing laws of the jurisdic-
 13 tion in which the conduct took place;

14 (i) Having had any professional or occupational license revoked, sus-
 15 pended or otherwise disciplined in Idaho or any other state, territory,
 16 country or jurisdiction;

17 (j) Failing to maintain the requirements for a license, including not
 18 fulfilling the continuing education requirement for license renewal
 19 established by the board in rule;

20 (k) Failing to comply with a board order; or

21 (l) Violating any of the provisions of this chapter or any of the rules
 22 promulgated by the board under the authority of this chapter.

23 (2) Sanctions that the board may impose include one (1) or more of the
 24 following:

25 (a) Refusal to grant or renew a license;

26 (b) Revocation of a license;

27 (c) Suspension of a license for a period not to exceed two (2) years;

28 (d) Restriction of a license to prohibit the offender from performing
 29 certain acts or from engaging in the practice of architecture in a par-
 30 ticular manner for a period not to exceed two (2) years;

31 (e) Placement of the offender on probation and supervision by the board
 32 for a period not to exceed two (2) years; and

33 (f) Imposition of an administrative fine not to exceed two thousand
 34 dollars (\$2,000) per violation.

35 (3) The procedures for disciplinary proceedings shall be in compliance
 36 with the Idaho administrative procedure act, the Idaho rules of administra-
 37 tive procedure, and the division of occupational and professional licenses.

38 (4) ~~The board or any~~ Any resident citizen may maintain an action in eq-
 39 uity in the name of the state of Idaho to enjoin perpetually any person, firm,
 40 company, corporation or partnership from persisting in the doing of any acts
 41 constituting a violation of this chapter. Such action shall be brought in
 42 the district court of the county in which said act or acts or some of them
 43 are claimed to have been or are being committed by filing a complaint setting
 44 forth the acts. The court, or a judge thereof at chambers, if satisfied from
 45 the complaint or by affidavits that the acts complained of have been or are
 46 being committed and will probably be persisted in, may issue a temporary writ
 47 enjoining the defendant from the commission of any such act or acts pending
 48 final disposition of the case. The case shall proceed as in other cases for
 49 injunction. If at the trial the commission of the act or acts by the defen-
 50 dant is established, and the court further finds that it is probable that

1 the defendant will continue therein or in similar violations, the court, or
 2 a judge thereof at chambers, shall enter a decree perpetually enjoining the
 3 defendant from thereafter committing said or similar acts.

4 SECTION 82. That Section 54-712, Idaho Code, be, and the same is hereby
 5 amended to read as follows:

6 54-712. DISCIPLINE BY THE BOARD -- GROUNDS. Any license or permit is-
 7 sued under the provisions of this chapter shall be subject to restriction,
 8 suspension, revocation or other discipline pursuant to the provisions of
 9 sections 54-707 and 54-713, Idaho Code, if the board finds that the licensee:

10 (1) Has been convicted, found guilty, or received a withheld judgment
 11 or suspended sentence in this or any other state of a crime that is deemed
 12 relevant in accordance with section 67-9411(1), Idaho Code;

13 (2) Used false, fraudulent or forged statements or documents, diplo-
 14 mas or credentials in connection with any licensing or other requirements of
 15 this chapter or misrepresented or concealed a material fact in obtaining li-
 16 censing, renewal or reinstatement;

17 (3) Practiced chiropractic under a false or assumed name in this or any
 18 other state;

19 (4) Advertised the practice of chiropractic in a false, misleading or
 20 deceptive manner;

21 (5) Knowingly aided or abetted any person to practice chiropractic
 22 who is not authorized to practice chiropractic as provided in this chapter
 23 or failed to adequately supervise auxiliary staff who have contact with
 24 patients that creates or results in an unreasonable risk of harm to the pa-
 25 tient;

26 (6) Is unable to obtain or renew a license to practice chiropractic, or
 27 whose license to practice chiropractic has been restricted, revoked or sus-
 28 pended by any other state, territory or district of the United States or for-
 29 eign jurisdiction; a certified copy of the order shall be conclusive evi-
 30 dence of any restriction, revocation or suspension of a license;

31 (7) Failed to safeguard the confidentiality of chiropractic records or
 32 other chiropractic information pertaining to identifiable clients, except
 33 as required or authorized by law;

34 (8) Practiced chiropractic when a license pursuant to this chapter is
 35 suspended, revoked, or inactive due to failure to renew the license within
 36 the time and manner required by the board;

37 (9) Refused to divulge to the board, upon demand, the means, method, de-
 38 vice or instrumentality used in the treatment of a disease, injury, ailment,
 39 or infirmity;

40 (10) Has engaged in any conduct that constitutes an abuse or exploita-
 41 tion of a patient arising out of the trust and confidence placed in the li-
 42 censee by the patient;

43 (11) Has committed any act that constitutes a crime that is deemed rele-
 44 vant in accordance with section 67-9411(1), Idaho Code;

45 (12) Is unable to practice chiropractic with reasonable skill and
 46 safety by reason of:

47 (a) Mental illness;

48 (b) Physical illness, including but not limited to physical deteriora-
 49 tion that adversely affects cognitive, motor or perceptive skills;

1 (c) Habitual or excessive use or abuse of drugs defined in law as con-
 2 trolled substances, alcohol, or any other substances that impair abil-
 3 ity; or

4 (d) Having a communicable, contagious or infectious disease that en-
 5 dangers the health of patients;

6 (13) Has violated the standard of care or code of ethics as adopted by
 7 the board or misrepresented or committed fraud in any aspect of the business
 8 or practice of chiropractic;

9 (14) Promoted unnecessary or inefficacious treatment, procedures, de-
 10 vices or services or practiced in an incompetent or negligent manner result-
 11 ing in or creating an unreasonable risk of harm; or

12 (15) Has violated any provision of this act or any rule promulgated by
 13 the board for the administration or enforcement of this act, interfered with
 14 the board's conduct of investigations, hearings or any other matters relat-
 15 ing to discipline, including but not limited to misrepresenting facts, at-
 16 tempting to influence witnesses or failing to answer subpoenas, or otherwise
 17 failed to cooperate with the board in the fulfillment of its duties.

18 SECTION 83. That Section 54-905, Idaho Code, be, and the same is hereby
 19 amended to read as follows:

20 54-905. UNLAWFUL PRACTICE OF DENTISTRY. (1) Any person who shall prac-
 21 tice, or shall in any manner hold himself out to any other person, or to the
 22 public, as qualified or licensed to practice dentistry, or who represents
 23 himself to be a dentist, within the state of Idaho, without at the time
 24 thereof being a dentist, shall be guilty of a misdemeanor and upon conviction
 25 thereof shall be fined not less than one thousand dollars (\$1,000) nor more
 26 than three thousand dollars (\$3,000), or be imprisoned in the county jail for
 27 not less than thirty (30) days nor more than six (6) months, or both.

28 (2) Each act of practice, or holding out, or representation, shall con-
 29 stitute a separate offense. In addition, a person found guilty of violating
 30 the provisions of this section for commercial gain may be assessed a civil
 31 penalty by the court, commensurate with the gain realized by the defendant,
 32 of up to twenty-five thousand dollars (\$25,000) for each violation of the
 33 provisions of this section. The civil penalty collected by the court shall
 34 be remitted to the general fund of the state.

35 ~~(2) Conviction under the provisions of this section shall not prevent~~
 36 ~~issuance of an injunction as provided in section 54-933, Idaho Code.~~

37 SECTION 84. That Section 54-906, Idaho Code, be, and the same is hereby
 38 amended to read as follows:

39 54-906. UNLAWFUL PRACTICE OF DENTAL HYGIENE. (1) Any person, not a
 40 dentist, who shall practice, or shall in any manner hold himself out to any
 41 other person, or to the public, as qualified or licensed to practice dental
 42 hygiene within the state of Idaho without at the time being a licensed dental
 43 hygienist, or who performs any act, function, or service permitted a dental
 44 hygienist by this act without the supervision of a dentist as specified by
 45 the rules of the board, shall be guilty of a misdemeanor and upon conviction
 46 shall be fined not less than one hundred dollars (\$100) nor more than three

1 hundred dollars (\$300), or be imprisoned in the county jail for not less than
 2 thirty (30) days nor more than six (6) months, or both.

3 (2) Each act of practice, or holding out, or representation shall con-
 4 stitute a separate offense.

5 ~~(2) Conviction under the provisions of this section shall not prevent~~
 6 ~~issuance of an injunction as provided in section 54-933, Idaho Code.~~

7 SECTION 85. That Section 54-906A, Idaho Code, be, and the same is hereby
 8 amended to read as follows:

9 54-906A. UNLAWFUL PRACTICE OF DENTAL THERAPY. (1) Any person, not a
 10 dentist, who shall practice or in any manner hold himself out to any other
 11 person or to the public as qualified or licensed to practice dental therapy
 12 within the state of Idaho without at the time being a licensed dental thera-
 13 pist, or who performs any act, function, or service that is permitted a den-
 14 tal therapist by this chapter without the supervision of a dentist as speci-
 15 fied by the rules of the board, shall be guilty of a misdemeanor and upon con-
 16 viction shall be fined no less than one hundred dollars (\$100) nor more than
 17 three hundred dollars (\$300), or be imprisoned in the county jail for no less
 18 than thirty (30) days nor more than six (6) months, or both.

19 (2) Each act of practice, or holding out, or representation shall con-
 20 stitute a separate offense.

21 ~~(2) Conviction under the provisions of this section shall not prevent~~
 22 ~~issuance of an injunction as provided in section 54-933, Idaho Code.~~

23 SECTION 86. That Section 54-1129, Idaho Code, be, and the same is hereby
 24 amended to read as follows:

25 54-1129. DECLARATION OF INTENT. It is the purpose of sections 54-1129
 26 through 54-1138, Idaho Code, to provide for the certification of licensed
 27 funeral establishments selling or offering for sale prearrangement sales
 28 contracts, to provide for the creation and administration of prearrangement
 29 sales contract trust funds to assure funds for the performance to purchasers
 30 who contract through prearrangement sales contracts for the purchase of
 31 funeral and cemetery merchandise and funeral and cemetery services, and to
 32 provide for the disbursement and allocation of trust funds upon the cer-
 33 tified seller's performance of its contractual obligations. The sections
 34 of Idaho Code specified herein shall not affect the provisions of sections
 35 54-1101 through 54-1121 and ~~sections 54-1127 and section~~ 54-1128, Idaho
 36 Code.

37 SECTION 87. That Section 54-1212, Idaho Code, be, and the same is hereby
 38 amended to read as follows:

39 54-1212. GENERAL REQUIREMENTS FOR EXAMINATION AND LICENSE. Except as
 40 herein otherwise expressly provided, no license as a professional engineer
 41 or professional land surveyor, or certification as an engineer intern or
 42 land surveyor intern, shall be issued until an applicant has successfully
 43 passed an examination given by or approved by the board, nor shall a license
 44 as a professional engineer or professional land surveyor, or certification
 45 as an engineer intern or land surveyor intern, be issued to an applicant hav-

1 ing habits or character that would justify revocation or suspension of his
2 license or certificate, ~~as provided in section 54-1220, Idaho Code~~. Except
3 for military personnel stationed in the state of Idaho on military orders and
4 except for persons employed full-time in the state of Idaho, only residents
5 of the state of Idaho and students enrolled at an Idaho university or college
6 may qualify for initial licensure. The following shall be considered as
7 minimum evidence satisfactory to the board that the applicant is qualified
8 for certification as an intern or licensure as a professional engineer or
9 professional land surveyor:

10 (1) As a professional engineer:

11 (a) Graduation from an approved engineering program of four (4) years
12 or more in a school or college approved by the board as being of sat-
13 isfactory standing, passage of examinations on the fundamentals of
14 engineering and professional engineering acceptable to the board, and
15 a specific record, after graduation, of an additional four (4) years or
16 more of progressive experience in engineering work of a grade and char-
17 acter satisfactory to the board and indicating that the applicant is
18 competent to practice professional engineering; or

19 (b) Graduation with a bachelor's degree in a related science from a
20 school or college approved by the board, and evidence satisfactory
21 to the board that the applicant possesses knowledge and skill approx-
22 imating that attained through graduation from an approved four (4)
23 year engineering program, passage of examinations on the fundamentals
24 of engineering and professional engineering acceptable to the board,
25 and a specific record, after graduation, of four (4) years or more of
26 progressive experience in engineering work of a grade and character
27 satisfactory to the board and indicating that the applicant is compe-
28 tent to practice professional engineering.

29 (2) As a professional land surveyor:

30 (a) Graduation from an approved surveying program of four (4) years or
31 more in a school or college approved by the board as being of satisfac-
32 tory standing, passage of examinations on the fundamentals of survey-
33 ing and professional land surveying acceptable to the board, and a spe-
34 cific record of an additional four (4) years or more of progressive com-
35 bined office and field experience in land surveying work of a grade and
36 character satisfactory to the board and indicating that the applicant
37 is competent to practice professional land surveying; or

38 (b) Graduation with a bachelor's degree in a related program from
39 a school or college approved by the board as being of satisfactory
40 standing, and evidence satisfactory to the board that the applicant
41 possesses knowledge and skill approximating that attained through
42 graduation from an approved four (4) year surveying program, passage
43 of examinations on the fundamentals of surveying and professional land
44 surveying acceptable to the board, and a specific record of an addi-
45 tional four (4) years or more of progressive combined office and field
46 experience in land surveying work of a grade and character satisfactory
47 to the board and indicating that the applicant is competent to practice
48 land surveying.

49 (3) As an engineer intern:

1 (a) Passage of an examination on the fundamentals of engineering and
2 graduation from an approved engineering program of four (4) years or
3 more in a school or college approved by the board as being of satisfac-
4 tory standing and indicating that the applicant is competent to enroll
5 as an engineer intern;

6 (b) Passage of an examination on the fundamentals of engineering and
7 graduation with a bachelor's degree in a related science from a school
8 or college approved by the board, and evidence satisfactory to the board
9 that the applicant possesses knowledge and skill approximating that
10 attained through graduation from an approved four (4) year engineering
11 program and indicating that the applicant is competent to be enrolled as
12 an engineer intern; or

13 (c) Passage of an examination on the fundamentals of engineering and
14 graduation with an engineering master's or doctoral degree approved by
15 the board, evidence satisfactory to the board that the applicant pos-
16 sesses knowledge and skill approximating that attained through gradua-
17 tion from an approved four (4) year engineering program and indicating
18 that the applicant is competent to be enrolled as an engineer intern.

19 (d) In the event the applicant passes the examination prior to gradua-
20 tion under the provisions of paragraph (a), (b) or (c) of this subsec-
21 tion, a certificate will be issued only after the applicant graduates.

22 (4) As a land surveyor intern:

23 (a) Passage of an examination on the fundamentals of surveying and
24 graduation from an approved surveying program of four (4) years or more
25 in a school or college approved by the board as being of satisfactory
26 standing and indicating that the applicant is competent to be enrolled
27 as a land surveyor intern; or

28 (b) Passage of an examination on the fundamentals of surveying and
29 graduation with a bachelor's degree in a related program from a school
30 or college approved by the board, evidence satisfactory to the board
31 that the applicant possesses knowledge and skill approximating that
32 attained through graduation from an approved four (4) year surveying
33 program and indicating that the applicant is competent to be enrolled as
34 a land surveyor intern.

35 (c) In the event the applicant passes the examination prior to grad-
36 uation from college under the provisions of paragraph (a) or (b) of
37 this subsection, a certificate shall be issued only after the applicant
38 graduates.

39 In counting years of experience for licensure as a professional engi-
40 neer or professional land surveyor, the board may, at its discretion, give
41 credit, not in excess of one (1) year, for satisfactory graduate study toward
42 a master's degree and not in excess of an additional one (1) year for satis-
43 factory graduate study toward a doctorate degree. In the event an applicant
44 obtains a doctorate degree without first obtaining a master's degree, the
45 board may, at its discretion, give credit, not in excess of two (2) years.

46 In considering the combined education and experience qualifications of
47 applicants, the board shall consider engineering teaching, land surveying
48 teaching, each year of satisfactory completion of undergraduate college
49 education, advanced degrees in engineering and advanced degrees in land

1 surveying in establishing the applicants' minimum composite knowledge and
2 skill.

3 The mere execution, as a contractor, of work designed by a professional
4 engineer, or the supervision of the construction of such work as a foreman or
5 superintendent, shall not be deemed to be the practice of engineering, but
6 if such experience, in the opinion of the board, has involved responsible su-
7 pervision of a character that will tend to expand the engineering knowledge
8 and skill of the applicant, the board may in its discretion give such credit
9 therefor as it may deem proper.

10 Any person having the necessary qualifications prescribed in this chap-
11 ter that otherwise entitle him for initial licensure or certification shall
12 be eligible although he may not be practicing his profession at the time of
13 making his application.

14 The board may postpone acting on an application for certification or li-
15 censure if disciplinary or criminal action related to the applicant's prac-
16 tice has been taken or is pending in any other jurisdiction. The board may
17 postpone the notification of examination results to applicants on any exam-
18 ination if there is any unresolved examination irregularity involving the
19 applicant. The board may investigate and adjudicate the validity of exami-
20 nation irregularities and if the examination irregularities are substanti-
21 ated, the board may invalidate the examination result of the applicant.

22 SECTION 88. That Section 54-1222, Idaho Code, be, and the same is hereby
23 amended to read as follows:

24 54-1222. VIOLATIONS AND PENALTIES ~~-- PROSECUTION OF OFFENSES.~~ Any
25 person who shall practice, or offer to practice, professional engineering
26 or professional land surveying in this state without being licensed in ac-
27 cordance with the provisions of this chapter, or any person presenting or
28 attempting to use as his own the license or the seal of another, or any person
29 who shall give any false or forged evidence of any kind to the board or to
30 any member thereof in obtaining a license or certificate, or any person who
31 shall falsely impersonate any other licensee of like or different name, or
32 any person who shall attempt to use an expired or revoked license or practice
33 at any time during a period the board has suspended or revoked his license, or
34 any person who shall violate any of the provisions of this chapter, shall be
35 guilty of a misdemeanor.

36 ~~Legal counsel selected by the board, or the attorney general of this~~
37 ~~state or anyone designated by him may act as legal advisor of the board. It~~
38 ~~shall be the duty of the attorney general of this state to enforce the pro-~~
39 ~~visions of this chapter relating to unlicensed practice and to prosecute~~
40 ~~any unlicensed person violating the same. The attorney general shall be~~
41 ~~reimbursed by the board for any fees and expenses incurred by the attorney~~
42 ~~general in representing the board or prosecuting unlicensed persons.~~

43 SECTION 89. That Section 54-1502A, Idaho Code, be, and the same is
44 hereby amended to read as follows:

45 54-1502A. NONLICENSED PERSONS -- PENALTIES AND REMEDIES. ~~(1) The~~
46 ~~board may investigate any person engaged in the practice of optometry within~~
47 ~~the state of Idaho or any person believed to have acted as an optometrist~~

without being duly licensed as required by this chapter. Upon receipt of a written complaint, the board shall perform an investigation of the facts alleged. If the board investigation reveals that the facts alleged or received are sufficient to proceed with formal action, the board may authorize the filing of an administrative complaint against the person and may seek injunctive relief prohibiting such person from engaging in the practice of optometry. In addition or alternatively, the board may refer violators of the provisions of this chapter for prosecution pursuant to section 54-1513, Idaho Code.

(2) (1) Each violation of the provisions of section 54-1502, Idaho Code, shall, upon conviction, result in a fine in an amount not to exceed one thousand dollars (\$1,000), or imprisonment in the county jail for not less than thirty (30) days but not more than ninety (90) days, or by both such fine and imprisonment.

(3) (2) The assessment of costs and fees incurred in the investigation and prosecution or defense of a person under this section shall be governed by the provisions of section 12-117(5), Idaho Code.

SECTION 90. That Section 54-1732, Idaho Code, be, and the same is hereby amended to read as follows:

54-1732. VIOLATIONS AND PENALTIES. (1) No drug outlet designated in section 54-1729, Idaho Code, shall be operated until a certificate has been issued to said facility by the board. Upon the finding of a violation of this subsection, the board may impose one (1) or more of the penalties enumerated in section 54-1728, Idaho Code.

(2) Reinstatement of a certificate that has been suspended, revoked or restricted by the board may be granted in accordance with the procedures specified in section 54-1728(7), Idaho Code.

(3) The following acts, or the failure to act, and the causing of any such act or failure are unlawful:

(a) The sale, delivery or administration of any prescription drug or legend drug, except an emergency medication pursuant to section 54-1735, Idaho Code, unless:

(i) Such legend drug is dispensed or delivered by a pharmacist or prescriber upon an original prescription, drug order or prescription drug order by a practitioner in good faith in the course of his practice. Any person violating the provisions of this subparagraph shall be guilty of a felony and on conviction thereof shall be imprisoned in the state penitentiary for a term not to exceed three (3) years, or punished by a fine of not more than five thousand dollars (\$5,000), or by both such fine and imprisonment; or

(ii) In the case of a legend drug dispensed to a person, there is a label affixed to the immediate container in which such drug is dispensed. Any person violating this subparagraph shall be guilty of a misdemeanor and upon conviction thereof shall be fined not more than five hundred dollars (\$500). Nothing in this subparagraph prohibits a practitioner from delivering professional samples of legend drugs in their original containers in the course of his practice when oral directions for use are given at the time of such delivery.

1 (b) The refilling of any prescription or drug order for a legend drug,
2 except as designated on the prescription or drug order or by the autho-
3 rization of the practitioner. Any person guilty of violating the pro-
4 visions of this paragraph shall be guilty of a misdemeanor and upon con-
5 viction thereof shall be incarcerated in the county jail for a term not
6 to exceed one (1) year or punished by a fine of not more than one thousand
7 dollars (\$1,000), or by both such fine and incarceration.

8 (c) The possession or use of a legend drug or a precursor, except an
9 emergency medication pursuant to section 54-1735, Idaho Code, by any
10 person unless such person obtains such drug on the prescription or drug
11 order of a practitioner. Any person guilty of violating the provisions
12 of this paragraph shall be guilty of a misdemeanor and upon conviction
13 thereof shall be incarcerated in the county jail for a term not to exceed
14 one (1) year or punished by a fine of not more than one thousand dollars
15 (\$1,000), or by both such fine and incarceration.

16 (d) The wholesale distribution of drugs or devices by a pharmacy except
17 for:

18 (i) The sale, transfer, merger or consolidation of all or part of
19 the business of a pharmacy or pharmacies from or with another phar-
20 macy or pharmacies, whether accomplished as a purchase and sale of
21 stock or business assets;

22 (ii) The sale of minimal quantities of prescription drugs to prac-
23 titioners for office use or to dispensing drug outlets for a spe-
24 cific patient need;

25 (iii) The sale of a prescription drug for emergency medical rea-
26 sons, but never to a wholesale distributor;

27 (iv) Intracompany sales of prescription drugs, meaning any trans-
28 action or transfer between any division, subsidiary, parent or af-
29 filiated or related company under common ownership and control of
30 a corporate entity, or any transaction or transfer between colli-
31 censees or a colicensed product, but never to a wholesale distrib-
32 utor; or

33 (v) Other exemptions as permitted by federal law.

34 (e) The failure to keep records as required by this chapter. Any person
35 guilty of violating the provisions of this paragraph shall be guilty of
36 a misdemeanor and upon conviction thereof shall be incarcerated in the
37 county jail for a term not to exceed one (1) year or punished by a fine
38 of not more than one thousand dollars (\$1,000), or by both such fine and
39 incarceration.

40 (f) The refusal to make available and to accord full opportunity to
41 check any record, as required by the board. Any person guilty of vio-
42 lating the provisions of this paragraph shall be guilty of a misdemeanor
43 and upon conviction thereof shall be incarcerated in the county jail for
44 a term not to exceed one (1) year or punished by a fine of not more than
45 one thousand dollars (\$1,000), or by both such fine and incarceration.

46 (g) It is unlawful to:

47 (i) Obtain or attempt to obtain a legend drug or procure or at-
48 tempt to procure the administration of a legend drug: by fraud,
49 deceit, misrepresentation or subterfuge; by the forgery or alter-
50 ation of a prescription, drug order, or of any written order; by

1 the concealment of a material fact; or by the use of a false name or
2 the giving of a false address;

3 (ii) Communicate information to a practitioner in an effort un-
4 lawfully to procure a legend drug, or unlawfully to procure the ad-
5 ministration of any such drug. Any such communication shall not be
6 deemed a privileged communication;

7 (iii) Intentionally make a false statement in any prescription,
8 drug order, order, report or record required by this chapter;

9 (iv) For the purpose of obtaining a legend drug to falsely assume
10 the title of, or represent himself to be, a manufacturer, whole-
11 saler, dispenser, prescriber, or other person;

12 (v) Make or utter any false or forged prescription or false drug
13 order or forged written order;

14 (vi) Affix any false or forged label to a package or receptacle
15 containing legend drugs. This subparagraph does not apply to law
16 enforcement agencies or their representatives while engaged in
17 enforcing state and federal drug laws; or

18 (vii) Wholesale or retail any prescription or legend drug to any
19 person in this state not entitled by law to deliver such drug to
20 another.

21 Every violation of paragraph (g) (i) through (vi) of this subsection shall
22 be a misdemeanor, and any person convicted thereof shall be incarcerated in
23 the county jail for a term not to exceed one (1) year or fined not more than
24 one thousand dollars (\$1,000), or punished by both such fine and imprison-
25 ment. Any person violating paragraph (g) (vii) of this subsection is guilty
26 of a felony and on conviction thereof shall be imprisoned in the state peni-
27 tentiary for a term not to exceed three (3) years or punished by a fine of not
28 more than five thousand dollars (\$5,000), or by both such fine and imprison-
29 ment.

30 (4) The ultimate user of a legend drug who has lawfully obtained such
31 legend drug may deliver, without being registered, the legend drug to an-
32 other person for the purpose of disposal of the legend drug if the person re-
33 ceiving the legend drug for purposes of disposal is authorized under a state
34 or federal law or regulation to engage in such activity.

35 SECTION 91. That Section 54-1920, Idaho Code, be, and the same is hereby
36 amended to read as follows:

37 54-1920. PENALTIES ~~— INJUNCTION~~. (1) Any person, firm, copartner-
38 ship, corporation, limited liability company, limited liability partner-
39 ship, association or other organization acting in the capacity of a public
40 works contractor within the meaning of this chapter, without a license as
41 herein provided or fails to comply with the provisions of subsection (1),
42 (2) or (3) of section 67-2310, Idaho Code, shall be guilty of a misdemeanor
43 and shall, upon conviction thereof, be punished by a fine not to exceed five
44 thousand dollars (\$5,000) or by imprisonment in the county jail for a term
45 not to exceed one (1) year or by both such fine and imprisonment, at the dis-
46 cretion of the court. The same penalties shall apply, upon conviction to
47 any member of a copartnership, or to any construction, managing or directing
48 officer of any corporation, limited liability company or limited liability

1 partnership, or other organization consenting to, participating in, or aid-
2 ing or abetting any such violation of this chapter.

3 (2) Every public officer who knowingly lets a public contract to any
4 person, firm, copartnership, corporation, limited liability company, lim-
5 ited liability partnership, association or other organization who does not
6 hold a license as required by the provisions of this chapter or knowingly
7 fails to comply with the provisions of subsection (1) or (2) of section
8 67-2310, Idaho Code, shall be guilty of a misdemeanor and upon conviction,
9 punishable as provided in this section, unless, however, there be no quali-
10 fied bidder willing to undertake the public works covered by the contract.
11 No person engaged in the business or acting in the capacity of a contractor,
12 may bring or maintain any action in any court of this state for the collection
13 of compensation for the performance of any act or contract for which a li-
14 cense is required by this chapter without alleging and providing that he was
15 a duly licensed contractor at all times during the performance of such act or
16 contract.

17 ~~(3) In addition to any other penalties specified in this section, when-~~
18 ~~ever any person violates the provisions of this chapter by acting as a public~~
19 ~~works contractor without a license, the administrator may maintain an action~~
20 ~~in the name of the state of Idaho to enjoin the person from any further viola-~~
21 ~~tions. Such action may be brought either in the county in which the acts are~~
22 ~~claimed to have been or are being committed, in the county where the defen-~~
23 ~~dant resides or in Ada county. Upon the filing of a verified complaint in the~~
24 ~~district court, the court, if satisfied that the acts complained of have been~~
25 ~~or probably are being or may be committed, may issue a temporary restraining~~
26 ~~order and/or preliminary injunction, without bond, enjoining the defendant~~
27 ~~from the commission of any such act or acts constituting the violation. A~~
28 ~~copy of the complaint shall be served upon the defendant and the proceedings~~
29 ~~shall thereafter be conducted as in other similar civil actions. If the com-~~
30 ~~mission of the act or acts is established, the court shall enter a decree per-~~
31 ~~manently enjoining the defendant from committing such act or acts. If an in-~~
32 ~~junction issued under the provisions of this section is violated, the court,~~
33 ~~or the judge thereof at chambers, may summarily try and punish the offender~~
34 ~~for contempt of court.~~

35 SECTION 92. That Section 54-2118, Idaho Code, be, and the same is hereby
36 amended to read as follows:

37 54-2118. VIOLATIONS OF CHAPTER -- REMEDIES AND PENALTIES. In addition
38 to the disciplinary actions set forth in section 54-2115, Idaho Code:

39 (1) Administrative actions.

40 (a) Any person violating the provisions of this chapter, or violating
41 a board rule, may be fined by the board or its duly authorized agent not
42 more than five thousand dollars (\$5,000) for each offense; provided
43 that each act on each day of violation shall constitute a separate of-
44 fense. Imposition of a fine may be made in conjunction with any other
45 board administrative action. No fine may be assessed unless the per-
46 son charged was given notice and opportunity for a hearing pursuant
47 to the Idaho administrative procedure act. If a person fined fails
48 to fully pay the fine, investigatory expenses or reasonable paralegal
49 and attorney's fees, the board may recover such amount by action in the

appropriate district court. Any assessment for costs and attorney's fees incurred in the investigation and prosecution or defense of a person under this chapter shall be governed by the provisions of section 12-117(5), Idaho Code.

(b) The board may establish alternatives to formal disciplinary action for violations of this chapter or board rules that may include a practice remediation program to educate and remediate licensees and certificate holders as a result of practice deficiencies. An alternative to formal discipline may be offered by the board's liaison officer to a licensee or certificate holder when the officer has determined, in the officer's sound discretion, after consultation with and approval of the board president or vice president if the president is unavailable, that animal and public safety will not be compromised and the violation can most appropriately be resolved without formal discipline. To further the purposes of an alternative to discipline, it will be offered only by or through the liaison officer and, unless the person violates its terms, the full board will not be informed of the alternative to discipline or have to expressly approve its terms. An alternative to formal discipline shall not be available and may not be offered by the liaison officer in any of the following circumstances:

- (i) Within the preceding five (5) years, the person has been formally disciplined by the board or been the subject of an alternative to discipline under this subsection;
- (ii) The person is currently on probation by the board;
- (iii) The person is currently under investigation by the board for any other offense;
- (iv) Felony charges are pending against the person, or the person is the subject of a current criminal investigation involving allegations that, if verified, may reasonably be expected to affect the person's qualifications or eligibility to remain licensed or certified under this chapter; or
- (v) The act or omission committed by the person:
 - 1. Caused significant harm to an animal;
 - 2. Created a substantial risk likely to cause significant harm to an animal; or
 - 3. Involved fraud or deception.

Among other terms and conditions, an alternative to formal discipline may require the licensee or certificate holder to comply with the instructions of the board's liaison officer on remedying the violation, pay a monetary civil penalty to the board of up to one thousand dollars (\$1,000) and pay all board investigative expenses and costs associated with the file, if warranted under section 12-117(5), Idaho Code.

Upon successful completion of the terms and conditions of the alternative to discipline, the violation shall not be considered "discipline," shall not be reported to any national disciplinary database, and documents and records related to the violation shall be exempt from disclosure under chapter 1, title 74, Idaho Code.

(2) Civil court proceedings. ~~The board, the attorney general's office, a county prosecuting attorney or any~~ Any citizen of this state may bring an action in the district court of either Ada county or any county where a viola-

tion is occurring, to enjoin any person from practicing veterinary medicine or practicing as a certified veterinary technician, certified euthanasia technician or any agency operating as a certified euthanasia agency without a currently valid, active license, certification, temporary permit or temporary certification. If the court finds that the person is violating the provisions of this chapter, it shall enter an injunction restraining that person from such unlawful acts.

(3) Criminal actions. Any person who practices veterinary medicine, any person practicing as a certified veterinary technician, a certified euthanasia technician or any agency operating as a certified euthanasia agency without a currently valid, active license, certification, temporary permit or temporary certification shall be guilty of a misdemeanor and upon conviction or withheld judgment shall be fined not less than one hundred dollars (\$100), nor more than ten thousand dollars (\$10,000), or incarcerated for no more than one hundred eighty (180) days, or both fined and incarcerated, and provided that each act of such unlawful practice shall constitute a distinct and separate offense.

(4) The remedies set forth in this section are not mutually exclusive and a successful action on any one (1) remedy does not preclude action on some or all of the other remedies.

SECTION 93. That Section 54-2821, Idaho Code, be, and the same is hereby amended to read as follows:

54-2821. VIOLATIONS OF CHAPTER. ~~(1)~~ Any person who shall practice, or offer to practice, professional geology for others in this state without being registered in accordance with the provisions of this chapter, or any person presenting or attempting to use as his own the certificate of registration or the seal of another, or any person who shall give any false or forged evidence of any kind to the board or to any member thereof in obtaining a certificate of registration, or any person who shall falsely impersonate any other registrant of like or different name, or any person who shall attempt to use an expired or a revoked certificate of registration or practice at any time during a period the board has suspended or revoked a certificate of registration or any person who shall violate any of the provisions of this chapter, shall be guilty of a misdemeanor.

~~(2) The board may employ legal counsel or may request the attorney general of this state or any assistant designated by him to act as legal advisor of the board, and the attorney general shall be reimbursed by the board for any expenses incurred by the attorney general in representing the board; and all violations of the provisions of this chapter shall be prosecuted by the prosecuting attorney of the county or counties in which the violations of the chapter may be committed.~~

SECTION 94. That Section 54-3713, Idaho Code, be, and the same is hereby amended to read as follows:

54-3713. SUSPENSION AND REVOCATION OF LICENSE -- REFUSAL TO RENEW. (1) Subject to the provisions of chapter 52, title 67, Idaho Code, the board may deny a license or refuse to renew a license, or may suspend or revoke a license or may impose probationary conditions or disciplinary actions ~~set out~~

1 ~~in section 54-3720, Idaho Code,~~ if the licensee or applicant for license has
 2 been found guilty of unprofessional conduct as set forth in section 54-3718,
 3 Idaho Code, which has endangered or is likely to endanger the health, wel-
 4 fare, or safety of the public.

5 (2) A denial, refusal to renew, suspension, revocation, or imposition
 6 of probationary conditions upon a license may be ordered by the board after
 7 a hearing in the manner provided by chapter 52, title 67, Idaho Code. An ap-
 8 plication for reinstatement may be made to the board one (1) year from the
 9 date of the revocation of a license. The board shall (a) accept or reject an
 10 application for reinstatement; and (b) hold a hearing to consider such rein-
 11 statement.

12 (3) A suspended license is subject to expiration and may be renewed as
 13 provided in this chapter, but such renewal shall not entitle the licensee,
 14 while the license remains suspended and until it is reinstated, to engage in
 15 the licensed activity, or in any other conduct or activity in violation of
 16 the order of judgment by which the license was suspended.

17 (4) A license revoked on disciplinary grounds is subject to expiration
 18 as provided in this chapter, but it may not be renewed. The licensee, as
 19 a condition of reinstatement, shall meet license requirements for new li-
 20 censees and shall pay a reinstatement fee set by the board.

21 SECTION 95. That Section 54-4014, Idaho Code, be, and the same is hereby
 22 amended to read as follows:

23 54-4014. ENFORCEMENT -- PENALTIES. A person who violates any provi-
 24 sion of this chapter shall, upon conviction, be guilty of a misdemeanor. ~~The~~
 25 ~~board may seek an injunction against any person who practices massage ther-~~
 26 ~~apy in violation of the provisions of this chapter.~~

27 SECTION 96. That Section 54-4119, Idaho Code, be, and the same is hereby
 28 amended to read as follows:

29 54-4119. PENALTY FOR VIOLATION. Any person who acts as or holds him-
 30 self out to be, a state licensed or certified residential or state certi-
 31 fied general real estate appraiser within the meaning of this chapter with-
 32 out first obtaining a license or certificate as provided herein, may be pun-
 33 ished by a fine not to exceed one thousand dollars (\$1,000) or by imprison-
 34 ment in the county jail for a term not to exceed one (1) year, or by both such
 35 fine and imprisonment in the discretion of the court. ~~The board may prefer~~
 36 ~~a complaint for violation of any section of this chapter before any court~~
 37 ~~of competent jurisdiction and in any manner prescribed in section 54-4118,~~
 38 ~~Idaho Code.~~

39 SECTION 97. That Section 54-4133, Idaho Code, be, and the same is hereby
 40 amended to read as follows:

41 54-4133. ENFORCEMENT. ~~In addition to the powers conferred in section~~
 42 ~~54-4107(2), Idaho Code, the board may conduct investigations of AMCs and The~~
 43 board may, after notice and hearing, censure an appraisal management com-
 44 pany, conditionally or unconditionally suspend, revoke or deny the issuance
 45 or renewal of any registration or any license issued under this act for vio-

lations of this act, appraisal-related laws or rules or orders of the board. The board may, in a final order, levy fines or impose civil penalties not to exceed two thousand five hundred dollars (\$2,500) for each violation if the board finds an appraisal management company is attempting to perform, has performed or has attempted to perform any of the following acts:

- (1) Any act in violation of this act;
- (2) A material violation of any rule or order adopted by the board; or
- (3) Procuring a registration or the renewal of a registration for itself or any other person by making a false statement, submitting false information or refusing to provide complete information in response to a question in an application.

SECTION 98. That Section 54-4313, Idaho Code, be, and the same is hereby amended to read as follows:

54-4313. MISREPRESENTATION -- CONSUMER PROTECTION ACT. ~~(1) The board may bring any action in the district court for a temporary restraining order, preliminary injunction, or permanent injunction against any person who violates the provisions of this chapter, who falsely holds himself out as a respiratory care practitioner, or who practices or provides respiratory care in violation of this chapter.~~

~~(2)~~ Any person who falsely holds himself out as a respiratory care practitioner shall be guilty of using a method, act, or practice that is declared to be unlawful as provided in chapter 6, title 48, Idaho Code.

SECTION 99. That Section 54-4713, Idaho Code, be, and the same is hereby amended to read as follows:

54-4713. PENALTIES. (1) A person who violates any provision of this chapter shall, upon conviction, be guilty of a misdemeanor.

(2) ~~The board may seek injunction against any person who practices acupuncture in violation of this chapter and may, in~~ In the event a permanent injunction is entered against such person or plea or verdict of guilty is entered in any criminal matter, ~~impose~~ a civil penalty in the amount of all costs and fees incurred ~~by the board~~ in prosecuting the matter may be imposed.

(3) The representation to another person that a person holds a license, certification or permit pursuant to this chapter, when such representation is untrue, constitutes the using of a method, act or practice which is declared to be unlawful under the provisions of chapter 6, title 48, Idaho Code.

SECTION 100. That Section 55-1612, Idaho Code, be, and the same is hereby amended to read as follows:

55-1612. PENALTY. Professional land surveyors failing to comply with the provisions hereof ~~shall be deemed to be within the purview of section 54-1220, Idaho Code, and shall be subject to disciplinary action as in said section provided.~~

1 SECTION 101. That Section 55-1613, Idaho Code, be, and the same is
2 hereby amended to read as follows:

3 55-1613. MONUMENTS DISTURBED BY CONSTRUCTION ACTIVITIES -- PROCEDURE
4 -- REQUIREMENTS. The physical existence and location of the monuments of
5 property controlling corners and accessories to corners, as well as bench-
6 marks established and points set in control surveys by agencies of the United
7 States government or the state of Idaho, shall be determined by a field
8 search and location survey conducted by or under the direction of a profes-
9 sional land surveyor prior to the time when project construction or related
10 activities may disturb them. Construction documents or plans prepared by
11 professional engineers shall show the existence and location of all such
12 monuments, accessories to corners, benchmarks and points set in control sur-
13 veys. All monuments, accessories to corners, benchmarks and points set in
14 control surveys that are lost or disturbed by construction shall be reestab-
15 lished and remonumented, at the expense of the agency or person causing their
16 loss or disturbance, at their original location or by the setting of a wit-
17 ness corner or reference point or a replacement benchmark or control point,
18 by or under the direction of a professional land surveyor. Professional
19 engineers who prepare construction documents or plans that do not indicate
20 the existence and location of all such monuments, accessories to corners and
21 benchmarks and points set in control surveys by agencies of the United States
22 government or the state of Idaho shall be deemed to be within the purview of
23 and subject to disciplinary action ~~as provided in section 54-1220, Idaho~~
24 ~~Code~~ pursuant to section 67-2616, Idaho Code.

25 SECTION 102. An emergency existing therefor, which emergency is hereby
26 declared to exist, this act shall be in full force and effect on and after
27 July 1, 2026.